



NORTH EASTERN RAILWAY
[ENGINEERING DEPARTMENT-OPEN LINE]

START OF TENDER DOCUMENT

of

e-Tender Document

**Office of the
Divisional Rail Manager (Engg.)
North Eastern Railway
Varanasi Division
Varanasi-221002**

**Signature Not
Verified**

**Digitally signed by
PRAVEEN KUMAR
PATHAK
Date: 2019.12.21
12:11:09 IST
Reason: IRE PS-CRIS
Location: New Delhi**

Instructions to Tenderers

- 1. Conditions of Tender :** The following Conditions & documents form part of Tender / Contract :
 - (a) Tender conditions (shown in all tabs of online bid submission form on IREPS website), and all conditions.
 - (b) Special & Additional Conditions/Specifications included in the documents uploaded on IREPS website against this tender.
 - (c) Schedule of approximate quantities (as shown in the relevant tab in the bid submission form on IREPS website)
 - (d) Standard General Conditions of Contract – September 2019 and Standard Specifications for Materials and Works of Indian Railway as amended/corrected upto latest Correction Slips, copies of which can be seen in the office of DRM/Engg/BSB or obtained from the office of the Chief Engineer, NER, Gorakhpur, on payment of prescribed charges.
 - (e) Schedule of Rates as amended / corrected upto latest Correction Slips, copies of which can be seen in the office of DRM/Engg./BSB or obtained from the office of the Chief Engineer, NER, Gorakhpur, on payment of prescribed charges.
 - (f) All general and detailed drawings pertaining to this work which will be issued by the Engineer or his representatives (from time to time) with all changes and modifications.
- 2. Drawings For The Work :** The Drawing for the work can be seen in the office of the DRM/Engg./BSB and / or Chief Engineer, NER, Gorakhpur, at any time during the office hours. The drawings are only for the guidance of Tenderer(s). Detailed working drawings (if required) based generally on the drawing mentioned above, will be given by the Engineer or his representative from time to time.
- 3.** The Tenderer(s) shall quote his / their rates as a percentage above or below the Schedule of Rates of NER as applicable to Varanasi Division except where he/they are required to quote item rates and must tender for all the items shown in the Schedule of approximate quantities attached. The quantities shown in the attached Schedule are given as a guide and are approximate only and are subject to variation according to the needs of the Railway. The Railway does not guarantee work under each item of the Schedule. The tenderer(s) shall quote rates / rebates only at specified place in Tender Form supplied by N E Railway. Any revision of rates / rebates submitted (quoted) through a separate letter whether enclosed with the bid (Tender Form) or submitted separately or mentioned elsewhere in the document other than specified place shall be summarily ignored and will not be considered.
- 4.** Tenders containing erasures and / or alterations of tender documents are liable to be rejected. Any correction made by tender(s) in his/their entries must be attested by him / them.
- 5.** The works are required to be completed within a period as stipulated in the tender document from the date of issue of acceptance letter.

5A.Earnest Money:

- (a) The tender must be accompanied by the amount as stipulated in the tender document as Earnest Money deposited in cash through e-payment gateway or as mentioned in tender documents, failing which the tender shall not be considered. Any firm recognized by Department of Industrial Policy

and Promotion (DIPP) as 'Startups' shall be exempted from payment of Earnest Money on submission of Registration Certificate issued by appropriate authority.

(b) The Tenderer(s) shall keep the offer open for a minimum period of 45 days (in case of two packet system of tendering 60 days) from the date of opening of the Tender. It is understood that the tender documents have been issued to the Tenderer(s) and the Tenderer(s), is / are permitted to tender in consideration of the stipulation on his / their part that after submitting his / their tender subject to the period being extended further, if required by mutual agreement from time to time, he will not resile from his offer or modify the terms and conditions thereof in a manner not acceptable to the Chief Engineer/Dy. Chief Engineer/Divisional Engineer of **North Eastern Railway**, Should the tenderer fail to observe or comply with the foregoing stipulation, the amount deposited as Earnest Money for the due performance of the above stipulation, shall be forfeited to the Railway.

(c) If his tender is accepted the earnest money mentioned in sub clause (a) above will be retained as part security for the due and faithful fulfillment of the contract in terms of Clause 16 of the Standard General Conditions of Contract- SEPTEMBER - 2019. The Earnest Money of other Tenderers shall, save as herein before provided, be returned to them, but the Railway shall not be responsible for any loss or depreciation to the Earnest Money that may happen thereto-while in their possession, nor be liable to pay interest thereon.

(d) In case Contractor submits the Term Deposit Receipt/Bank Guarantee Bond towards full Security Deposit, the Railway shall return the Earnest Money so retained to the Contractor.

6. **Rights of The Railway To Deal With Tender :** The authority for the acceptance of the tender will rest with the Railway. It shall not be obligatory on the said authority to accept the lowest tender or any other tender and no tenderers(s) shall demand any explanation for the cause of rejection of his/their tender nor the Railway to assign reasons for declining to consider or reject any particular tender or tenders.
7. If the tenderer(s) deliberately gives / give wrong information in his / their tender or creates / create circumstances for the acceptance of his / their tender, the Railway reserves the right to reject such tender at any stage.
8. If the tenderer(s) expire(s) after the submission of his / their tender or after the acceptance of his / their tender, the Railway shall deem such tender cancelled. If a partner of a firm expires after the submission of their tender or after the acceptance of their tender, the Railway shall deem such tender as cancelled, unless the firm retains its character.

9. ELIGIBILITY CRITERIA:- (Page 12 of GCC-2019)

(FOR WORKS WHOSE ADVERTISED TENDER VALUE IS COSTING ABOVE ₹ 50 LAKHS). For Tenders of value more than ₹ 10 Crore, JV Firm is eligible for the Tender subject to fulfillment of Technical and Financial eligibility as per IRSGCC SEPTEMBER - 2019.

***Definitions of Similar nature of work described in Standard Technical Criteria of this tender”** [As mentioned in **ELIGIBILITY CONDITIONS** of this tender]

9.1 – Technical Eligibility Criteria :

Similar nature of work successfully completed during the last 07 (Seven) years, ending last day of month previous to the one in which tender is invited.	Eligibility in terms of Experience: 9.1(a) The tenderer must have successfully completed any of the following during last 07 (seven) years, ending last day of month previous to the one in which tender is invited: Three similar works each costing not less than the amount equal to 30% of advertised value of the tender or Two similar works each costing not less than the amount equal to 40% of advertised value of the tender or One similar work each costing not less than the amount equal to 60% of advertised value of the tender. 9.1(b) (i) In case of composite works (e.g. works involving more than one distinct component, such as Civil Engineering works, S&T works, Electrical works, OHE works etc. and in the case of major bridges – substructure, superstructure etc.), tenderer must have successfully completed any of the following during last 07 (seven) years, ending last day of month previous to the one in which tender is invited: Three similar works each costing not less than the amount equal to 30% of advertised value of each component of tender, or Two similar works each costing not less than the amount equal to 40% of advertised value of each component of tender, or One similar work each costing not less than the amount equal to 60% of advertised value of each component of tender. Note: Separate completed works of minimum required values for each component shall also be considered for fulfillment of technical eligibility criteria. (b) (ii) In such cases, what constitutes a component in a composite work shall be clearly predefined with estimated tender cost of it, as part of the tender documents without any ambiguity. Any work
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	or set of works shall be considered to be a separate component, only when cost of the component is more than ₹ 2 crore each. Note for Item 9.1: <i>Work experience certificate from private individual shall not be considered.</i> However, in addition to work experience certificates issued by any Govt. Organisation, work experience certificate issued by Public listed company having average annual turnover of Rs 500 crore and above in last 3 financial years excluding the current financial year, listed on National Stock Exchange or Bombay Stock Exchange, incorporated/registered atleast 5 years prior to the date of opening of tender, shall also be considered provided the work experience certificate has been issued by a person authorized by the Public listed company to issue such certificates. In case tenderer submits work experience certificate issued by public listed company, the tenderer shall also submit along with work experience certificate, the relevant copy of work order, bill of quantities, bill wise details of payment received duly certified by Chartered Accountant, TDS certificates for all payments received and copy of final/last bill paid by company in support of above work experience certificate. <i>[As per Annexure –B attached in tender document]</i>
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9.2 - **Financial Eligibility Criteria:**

Financial Eligibility Criteria: The tenderer must have received contractual payments in the previous three financial years and the current financial year upto the date of opening of tender, at least 150% of the advertised value of the tender.	The tenderers shall submit Certificates to this effect which may be an attested Certificate from the concerned department / client and/or Audited Balance Sheet duly certified by the Chartered Accountant etc. <i>{Authority : Railway Board's letter no. 94/CE-I/CT/4 (Pt. II), Dated 07/14.11.2013}</i> <i>[As per Annexure –C attached in tender document]</i>
Note :-	The documents attached to the tender document should be clear and legible for evaluation of tenders, illegible copies will not be considered for evaluation. Contractual payment should not be construed as “Turn Over “which includes contractual payments received, works in progress,

	stock on hand etc. Current financial year means, the financial year in which the tender is opened. Financial year means on and from 1st April to 31st March.
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[A] The “tenderer[s]” mentioned in Para 9.1 and 9.2 above means – In the “name and style”, the tenderer[s] who are submitting their offers in the capacity of individual/proprietary/partnership firms/JV etc.

[B] Normally, the credentials [technical and financial] should be in the “name and style” of the tenderer[s] who are submitting their offer as a tenderer[s].

[C] The tenderer[s] who have acquired necessary credentials [technical and financial] as a constituent in the partnership/Joint Venture firm, such apportioned credentials [technical and financial] will be considered. [Documents shall be furnished].

[D] The technical credentials with regard to execution and successful completion of similar work (As per mention in para 9.1) .

[E] Permissibility of Joint Venture/MOU/Consortium in this tender. [As mentioned in NIT Header]

[F] Authentic copy of the documents should be uploaded by the tenderer[s] along with their offer to fulfill the eligibility criteria otherwise their offers will not be considered and summarily rejected.

9.3 No Technical and Financial credentials are required for tenders having value up to Rs 50 lakh.

10.0 Bid Capacity: The tender/technical bid will be evaluated based on bid capacity formula detailed as Annexure-5.

11.0 Tenderer Credentials: (Page 13 of GCC-2019)

Documents testifying tenderer previous experience and financial status should be produced alongwith the tender.

Tenderer(s) who is / are not borne on the approved list of the Contractors of **North Eastern Railway** shall submit alongwith his / their tender:

- (i) Certificates and testimonials regarding contracting experience for the type of job for which tender is invited with list of works carried out in the past.
- (ii) Certificates which may be an attested Certificate from the client, Audited Balance Sheet duly certified by the Chartered Accountant etc regarding contractual payments received in the past.

- (iii) The list of personnel / organization on hand and proposed to be engaged for the tendered work. Similarly list of Plant & Machinery available on hand and proposed to be inducted and hired for the tendered work.
 - (iv) A copy of notarized affidavit on a non-judicial stamp paper stating that they are not liable to be disqualified and all their statements/documents submitted alongwith bid are true and factual. Standard format of the affidavit to be submitted by the bidder is enclosed as Annexure-1. Non submission of a copy of notarised affidavit by the bidder shall result in summarily rejection of his/their bid. It shall be mandatorily incumbent upon the tenderer to identify, state and submit the supporting documents duly self attested by which they/he are/is qualifying the Qualifying Criteria mentioned in the Tender Document.
 - (v) The Railway reserves the right to verify all statements, information and documents submitted by the bidder in his tender offer, and the bidder shall, when so required by the Railway, make available all such information, evidence and documents as may be necessary for such verification. Any such verification or lack of such verification, by the Railway shall not relieve the bidder of its obligations or liabilities hereunder nor will it affect any rights of the Railway thereunder.
 - (vi) (a) In case of any information submitted by tenderer is found to be false forged or incorrect at any time during process for evaluation of tenders, it shall lead to forfeiture of the tender Earnest Money Deposit besides banning of business for a period of upto five years.
(b) In case of any information submitted by tenderer is found to be false forged or incorrect after the award of contract, the contract shall be terminated. Earnest Money Deposit (EMD), Performance Guarantee and Security Deposit available with the railway shall be forfeited. In addition, other dues of the contractor, if any, under this contract shall be forfeited and agency shall be banned for doing business for a period of upto five years.
12. Non-compliance with any of the conditions set forth therein above is liable to result in the tender being rejected.
13. **Execution Of Contract Documents** : The successful Tenderer(s) shall be required to execute an agreement with the President of India acting through the North Eastern Railway for carrying out the work according to Standard General Conditions of Contract, Special Conditions / Specifications annexed to the tender and Standard Specifications (Works and Materials) of Railway as amended/corrected upto latest correction slips, mentioned in tender form (First Sheet).
14. **Partnership Deeds, Power Of Attorney Etc. :** (Page 14 of GCC-2019)
- (i) The tenderer shall clearly specify whether the tender is submitted on his own (Proprietary Firm) or on behalf of a Partnership Firm / company / Joint Venture (JV) / Registered Society / Registered Trust etc. The tenderer(s) shall enclose the attested copies of the constitution of their concern, and copy of PAN Card along with their tender. Tender Documents in such cases are to be signed by such persons as may be legally competent to sign them on behalf of the firm, company, association, trust or society, as the case may be.
 - (ii) In case tenderer is other than sole proprietorship firm, following documents shall be submitted by the tenderer:

- (a) **Partnership Firm:** The tenderer shall submit (i) a copy of Partnership Deed and (ii) a copy of Power of Attorney (duly registered as per prevailing law) in favour of an individual to sign the tender documents and create liability against the Firm.
 - (b) **Joint Venture (JV):** The tenderer shall submit documents as mentioned in Clause 17 of the Tender Form (Second Sheet).
 - (c) **Company registered under Companies Act-2013:** The tenderer shall submit (i) the copies of MOA (Memorandum of Association) / AOA (Articles of Association) of the company; and (ii) A copy of Authorization/Power of Attorney issued by the Company (backed by the resolution of Board of Directors) in favour of the individual to sign the tender on behalf of the company and create liability against the company.
 - (d) **LLP (Limited Liability Partnership) Firm:** If the tender is submitted on behalf of a LLP Firm registered under LLP Act-2008, the tenderer shall submit alongwith the tender- (i) a copy of LLP Agreement, (ii) a copy of Certificate of Incorporation; and (iii) a copy of Power of Attorney/Authorisation issued by the LLP Firm in favour of the individual to sign the tender on behalf of the LLP Firm and create liability against the Firm.
 - (e) **Registered Society & Registered Trust:** The tenderer shall submit (i) a copy of the Certificate of Registration, (ii) Deed of Formation; and (iii) a copy of Power of Attorney in favour of the individual to sign the tender documents and create liability against the Society/Trust.
 - (iii) If it is NOT mentioned in the submitted tender that tender is being submitted on behalf of a Sole Proprietorship firm / Partnership firm / Joint Venture / Registered Company etc., then the tender shall be treated as having been submitted by the individual who has signed the tender.
 - (iv) After opening of the tender, any document pertaining to the constitution of Sole Proprietorship Firm / Partnership Firm / Registered Company/ Registered Trust / Registered Society etc. shall be neither asked nor considered, if submitted.
 - (v) A tender from JV/Partnership firm etc. shall be considered only where permissible as per the tender conditions.
 - (vi) The Railway will not be bound by any change in the composition of the firm made subsequent to the submission of tender. Railway may, however, recognize such power of attorney and changes after obtaining proper legal advice, the cost of which will be chargeable to the Contractor.
15. The tenderer whether sole proprietor, a company or a partnership firm / joint venture (JV) / registered society / registered trust etc if they want to act through agent or individual partner(s), should submit along with the tender, a copy of power of attorney duly stamped and authenticated by a Notary Public or by Magistrate in favour of the specific person whether he/they be partner(s) of the firm or any other person specifically authorizing him/them to submit the tender, sign the agreement, receive money, co-ordinate measurements through contractor's authorized engineer, witness

measurements, sign measurement books, compromise, settle, relinquish any claim(s) preferred by the firm and sign "No Claim Certificate" and refer all or any disputes to arbitration.

16. Employment/Partnership Etc. Of Retired Railway Employees :

(a) Should a tenderer be a retired Engineer of the gazetted rank or any other gazette officer working before his retirement, whether in the executive or administrative capacity or whether holding a pensionable post or not, in the Engineering or any other department of any of the railways owned and administered by the President of India for the time being, or should a tenderer being partnership firm / company / joint venture (JV) / registered society / registered trust etc have as one of its partners a retired Engineer or retired gazetted officer as aforesaid, or should a tenderer being an incorporated company have any such retired Engineer or retired officer as one of its directors or should a tenderer have in his employment any retired Engineer or retired gazetted officer as aforesaid, the full information as to the date of retirement of such Engineer or gazetted officer from the said service and in case where such Engineer or officer had not retired from government service at least 1 year prior to the date of submission of the tender as to whether permission for taking such contract, or if the Contractor be a partnership firm or an incorporated company, to become a partner or director as the case may be, or to take the employment under the Contractor, has been obtained by the tenderer or the Engineer or officer, as the case may be from the President of India or any officer, duly authorized by him in this behalf, shall be clearly stated in writing at the time of submitting the tender. Tenders without the information above referred to or a statement to the effect that no such retired Engineer or retired gazetted officer is so associated with the tenderer, as the case may be, shall be rejected.

(b) Should a tenderer or Contractor being an individual on the list of approved Contractors, have a relative(s) or in the case of partnership firm/ company / joint venture (jv) / registered society / registered trust etc. one or more of his shareholder(s) or a relative(s) of the shareholder(s) employed in gazetted capacity in the Engineering or any other department of the North Eastern railway, the authority inviting tenders shall be informed of the fact at the time of submission of tender, failing which the tender may be disqualified/rejected or if such fact subsequently comes to light, the contract may be rescinded in accordance with provision in clause 62 of standard general conditions of contract.

17. Right of Railway to Deal with Tenders: The Railway reserves the right of not to invite tenders for any of Railway work or works or to invite open or limited tenders and when tenders are called to accept a tender in whole or in part or reject any tender or all tenders without assigning reasons for any such action.

18. Two Packets System of Tendering: With a view to assess the tenders technically without being influenced by the financial bids, 'Two Packets System of tendering' shall be adopted wherein tender documents provide for the same.

19. The earnest money deposited with the tender of successful tenderer will be retained as part of security deposit which will be 5% of the value of work awarded. The balance amount of security deposit will recovered "on account bills" of the work @10% till it reaches upto 5% of the value including earnest money.

20. Performance Guarantee: Ref-Indian Railways Standard GCC, SEPTEMBER -2019)

The procedure for obtaining Performance Guarantee is outlined below:

- (a) The successful bidder shall have to submit a Performance Guarantee (PG) within 21 (Twenty one) days from the date of issue of Letter of Acceptance (LOA). Extension of time for submission of PG beyond 21 (Twenty one) days and upto 60 days from the date of issue of LOA may be given by the Authority who is competent to sign the contract agreement. However, a penal interest of 12% per annum shall be charged for the delay beyond 21(Twenty one) days, i.e. from 22nd day after the date of issue of LOA. Further, if the 60th day happens to be a declared holiday in the concerned office of the Railway, submission of PG can be accepted on the next working day.

In all other cases, if the Contractor fails to submit the requisite PG even after 60 days from the date of issue of LOA, the contract is liable to be terminated. In case contract is terminated railway shall be entitled to forfeit Earnest Money Deposit and other dues payable against that contract. In case a tenderer has not submitted Earnest Money Deposit on the strength of their registration as a Startup recognized by Department of Industrial Policy and Promotion (DIPP) under Ministry of Commerce and Industry, DIPP shall be informed to this effect.

The failed Contractor shall be debarred from participating in re-tender for that work.

21. For enactment of this Act, the tenderer shall be required to pay cess @ 1% of cost of construction work to be deducted from each bill. Cost of material shall be outside the purview of cess, when supplied under a separate schedule item (Railway Board's No. 2008/(CE-1)CT/6 Dt. 09-07-2008)
22. Before submitting the offer, please read carefully complete e-tender document including Instructions to Tenderers, General Conditions of Contract, September - 2019, Special Conditions of Contract, Additional Special Conditions of Contract i.e. Technical Conditions etc. as available on the page of North Eastern Railway [**NORTH EASTERN RLY / VARANASI DIVISION-ENG**] on the web site www.ireps.gov.in.
23. The Cost of Tender Document shall not be clubbed with the Earnest Money Deposit. The e- bid submitted without requisite Cost of Tender Document and Earnest Money Deposit in appropriate form will be summarily rejected.
24. Time of availability of tender document on website: www.ireps.gov.in is divided into two parts viz, Advertisement period and offer submission period as detailed below:-
- a) Advertisement Period:-Time during which all information pertaining to tender shall be available but offers cannot be submitted.
- b) Offer submission period: - Fifteen days prior to closing of tender, during which tenderers can submit their offers.
- The prospective tenderers are advised to revisit the website www.ireps.gov.in. within advertisement period to look for any changes/corrigenda issued for the tender. In the offer submission period, no changes will be issued for the tender.
25. No Manual Offers sent by Post/FAX or in person shall be accepted against such e-tenders, even if these are submitted on the firm's letter head and received in time. The manual offer uploaded as attached document shall not be considered also. All such manual offers shall be considered as invalid offers and shall be rejected summarily without any consideration.

26. E-tender is not transferable and the same is to be submitted with digital signature by the pre-authorized personnel of the tenderer, already registered with the site.
27. If the required information asked for in the tender document is not furnished, the tender will be otherwise treated incomplete and hence will not be considered.
28. The on-line bidding doesn't permit submission of offer after stipulated date and time of the e-tender. Hence there is no scope for late/ delayed tenders.
29. **In case of Two Packet of bidding, after scrutinizing the Techno-Commercial offer and short listing the tenderers, the Financial Bid shall be opened on a subsequent date only for those tenderers who will be qualifying Techno-Commercial Offers as per eligibility/qualifying criteria laid down. The date of opening of Financial Bid will be advised online. The Railway's decision in this regard will be final.**

Multiple L-1

In case of more than one L-1 bidders, tender may be awarded to tenderer having higher Bid Capacity. In case Bid Capacity is also the same, tenderer having done more value of similar work in last seven financial years and the current financial year upto the date of opening of the tender, may be selected for the award. Instructions with respect to Bid Capacity will follow.

INSTRUCTIONS TO THE TENDERER FOR TWO PACKET SYSTEM OF TENDERING

1. The tender submitted by the tenderer/s will consist of TWO BIDS i.e. as ‘TECHNO-COMMERCIAL OFFER’ and as ‘FINANCIAL BID’. Tenderers to note that Techno-Commercial offer and financial bid will be filled in the given proforma through IREPS only. (Applicable for tenders of more than Rs. 10.00 Cr. only)

2. “TECHNO-COMMERCIAL OFFER” will be opened as per specified schedule. This bid shall contain the documents as listed below. Tenderers are requested to ensure that all such documents as listed are submitted duly filled in all respect in their technical bid failing which his/their offer is likely to be summarily rejected.

2.1 Techno- Commercial Offer.

2.1.1 Tenderers are compulsorily required to enclose Affidavit as per Annexure 1 of tender document without that the offer will be considered incomplete and will be rejected summarily.

2.1.2 Techno-Commercial offer shall include various documents mentioned in the tender conditions some of which are as under:-

- (i) Earnest money in the proper form as prescribed in tender Conditions.**
- (ii) The documents confirming the fulfillment of eligibility criteria is laid down in the tender conditions. The document submitted as proof of fulfilling the eligibility criteria will be initially evaluated and offers not meeting the requisite eligibility criteria will be summarily rejected without evaluating the technical portion.**
- (iii) Documentary proof in support of Eligibility criteria financial capability.**
- (iv) History Sheet of tenderer as per proforma given in Annexure -A**
- (v) Compliance of Eligibility criteria by the tenderer regarding execution of similar work to the extent of advertised tender value as per Proforma given in Annexure-B.**
- (vi) Compliance of Eligibility criteria by the Tenderer regarding contractual payments received during the qualifying period i.e. during the previous three financial years and the current financial year upto the date of opening of tender as per Proforma given in Annexure-C.**
- (vii) Details of technical and other personnels available on hand and proposed to be engaged as per Proforma given in Annexure-D**
- (viii) Details of construction machineries, tools and plants, vehicle etc. Available on hand and proposed to be utilised in work as per Proforma given in Annexure-E.**
- (ix) Details of works completed during previous Seven years (ending last day of the month previous to the one in which tender is invited) by the tenderer (s) as per Proforma given in Annexure-F.**
- (x) Details of works on hand the tenderer(s) as per Proforma given in Annexure-G**
- (xi) Declaration regarding association of railway officer(s) with tenderer(s) as per Proforma given in Annexure-H**
- (xii) List of court cases during previous seven years as per Proforma given in Annexure-I.**
- (xiii) List of arbitration cases during previous seven years as per Proforma given in Annexure-J.**
- (xiv) Constitution of Firm, Proforma as given in Annexure-K.**

3. (FINANCIAL BID).

3.1 The price bid of only those tenderer/s will be opened whose technical bids are found acceptable by the Railway.

3.2 The time, date and venue of opening of price bid shall be notified to successful tenderer/s after evaluation of technical bid.

4. If after the scrutiny of the TECHNO-COMMERCIAL OFFER, it is found necessary to have some revision in scope and/or content, to bring the same at par with one another and in conformity with the tender conditions and specifications and such other condition as found necessary, the tenderers will be advised accordingly to clarify their technical bids to bring all the technical bids at par.

5 It shall also be binding on the tenderer to keep the original Techno-Commercial offer and Financial bid open and the railway have the right to accept the original or revised technical bid and original price bids. The Railway's decision in this regard shall be final and binding on the tenderer/s.

6. The 'Original Financial Bids' and/or 'Revised Financial Bids' will be opened on the time, date and venue as will be notified in advance and advised to tenderer/s.

30. The tenderer/s may note that Railway reserve the right to either accept or reject any bid/s without assigning any reasons whatsoever and tenderer/s shall have no claim/s on this account.
31. Legal jurisdiction shall be Civil Court Varanasi.
32. Prospective tenderer/s may contact concerned Senior Divisional Engineer/Co-ordination, I, II, III, Divisional Engineer/General/N.E. Railway, Varanasi for obtaining further clarifications, if required.
33. The tenderer/s is/are advised to submit all documents in one go with the offer i.e. technical bid.
34. Tender To Be Digitally Signed By Authorised Person:-
 - a) If it is NOT mentioned in the submitted tender that tender is being submitted on behalf of a Sole Proprietorship firm / Partnership firm / Joint Venture / Registered Company etc., then the tender shall be treated as having been submitted by the individual who has signed the tender.
 - b) The tenderer whether sole proprietor, a company or a partnership firm / joint venture (JV) / registered society / registered trust etc if they want to act through agent or individual partner(s), should submit along with the tender, a copy of power of attorney duly stamped and authenticated by a Notary Public or by Magistrate in favour of the specific person whether he/they be partner(s) of the firm or any other person specifically authorizing him/them to submit the tender, sign the agreement, receive money, co-ordinate measurements through contractor's authorized engineer, witness measurements, sign measurement books, compromise, settle, relinquish any claim(s) preferred by the firm and sign "No Claim Certificate" and refer all or any disputes to arbitration.

- c) The Railway will not be bound by any Power of Attorney granted by the tenderer or by changes in the composition of the firm made subsequent to the execution of the Contract. It may, however, recognize such power of Attorney and changes after obtaining proper legal advice to the satisfaction of the Railway, the cost of which will be chargeable to the Contractor.
35. No correspondence shall be entertained after opening of tender and any suo-moto letters or submission in regard to tender, except specifically mentioned to be submitted as per the terms of the tender or sought for by the Railway, shall be treated as Null and Void.
36. The tenderer[s] must fulfil/satisfy the following mandatory requirements failing which their offers shall be summarily rejected: **MANDATORY REQUIREMENTS :**
- a) Payment of Earnest Money Deposit (EMD) and Tender Document Cost (TDC), in respect of e-tendering, will be accepted through net banking or payment gateway only.
 - b) Note:- Fixed deposit receipt (FDR) will not be accepted as EMD for tenders invited on IREPS (e-tender portal).
 - c) Regarding technical and financial eligibility criteria, scanned copies of supportive documents/certificates from competent officials are to be submitted along with their offer.
 - d) Scanned copies of documents in support of formation/registration of the company/firm/legal authorization of the person to deal with the tender/notarized/registered wherever required as per tender conditions are to be submitted.
37. Certified copies of Partnership Deed, Power of Attorney duly stamped and authenticated Notary Public, documents related to Joint Venture/MOU/Consortium duly notarized should be uploaded along with their offer.
38. **False/incomplete statement:** Any statement/declaration made by the tenderer while uploading tender or submitted later as specifically required in the tender, if proved wrong or false or incomplete or such as to withhold any information relevant to the award of the tender, at any stage of the tender or in the event of his tender having been accepted, at any stage the contract, shall render his/their tender[s]/contract[s] liable to be cancelled/rescinded, in addition to the following:
- a) If such statement is found at the tender stage, his total Earnest Money shall be forfeited.
 - b) In case such a statement is found at the contract stage, the conditions/rights available to the Railways under Clause 62 of the G.C.C. shall be applicable.
 - c) In addition to above, action of banning of business may also be taken against such tenderers including prosecution under law.
39. **Special Conditions :**
- a. The copies of the various letters/documentary proof/statement etc. must be uploaded with e-Tender and shall be properly indexed by indicating the Annexure Nos. like Annexure-1, Annexure-2 etc. on the right hand side top corner of the same and this Annexure No. shall also be indicated in relevant column of the Annexure-A to Annexure-K supplied to the tenderer with the Technical offer and Financial bid.

b) In addition to the information given in the prescribed form of the Technical and Commercial Offer, the tenderer may also submit any additional relevant information connected with this tender if considered necessary, uploading copies of the documents relied upon.

c) Submission of Tender does not bind the Railway Authority for any claim of any nature whatsoever.

40.0. The tenderer should also upload copy of the following documents along with the tender.

- 40.1 History Sheet of tenderer **[As per Annexure –A attached in tender document]**
- 40.2 List of personal, organisation available on hand and proposed to be engaged for the subject work. **[As per Annexure –D attached in tender document]**
- 40.3 List of plant and Machinery available on hand (own) and proposed to be inducted (own and hired to be given separately) for the subject work. **[As per Annexure –E attached in tender document]**
- 40.4 List of Works successfully completed in last seven years (Ending last day of month previous to the one in which tender is invited) giving Description of Work, Organization for whom executed, approximate value of contract at time of award, Date of award and Date of Completion. Date of actual Start, Actual Completion and Final value of Contract shall also be given. **[As per Annexure –F attached in tender document]**
- 40.5 List of Works on hand if any, indicating Description of Work, Contract Value, Approximate value of balance work yet to be done and Date of award. **[As per Annexure –G attached in tender document]**
- 40.6 Declaration regarding association of railway officer(s) with tenderer(s) **[As per Annexure – H attached in tender document]**
- 40.7 List of court cases during previous seven years **[As per Annexure –I attached in tender document]**
- 40.8 List of arbitration cases during previous seven years **[As per Annexure –J attached in tender document]**
- NOTE:** In case of 40.04 and 40.05 above, supportive documents/ Certificates from organizations with whom they worked/ are working should be uploaded. Certificates from private individuals for whom such works are executed/being executed will not be accepted.
- 40.9 Constitution of Firm **[As per Annexure –K attached in tender document]**

41.0 The copy of the credential certificates as per para 9.1 above to be uploaded by the tenderers which should contain the basic information such as [i] Contract Agreement No., [ii] Detailed nature of work executed, [iii] Date of successful completion of work, [iv] Total amount received, [v] Name and Style in whose favour the credential certificate is issued if in favour of JV share in JV. (vi) Execution of quantities of specific items if asked for to fulfill eligibility criteria.

42.0 System of Verification of Tenderer's credentials :-

42.1 For the works tenders, it has been decided to adopt the affidavit-based system, of credential verification. The tenderer shall submit along with the tender document, documents in support of his/their claim to fulfill the eligibility criteria as mentioned in the tender document. Each page of the copy of documents/certificates in support of credentials, submitted by the tenderer, shall be self-attested/digitally signed by the tenderer or authorized representative of the tendering firm. Self-

attestation shall include signature stamp and date (on each page). Only those documents which are declared explicitly by the tender as “documents supporting the claim of qualifying the laid down eligibility criteria” will be considered for evaluating his/their tender.

42.2 In all works tender documents , following para added in the section describing the qualification verification and eligibility criteria .

“The tenderers shall submit a notarized affidavit on a non-judicial stamp paper stating that they are not liable to be disqualified and all their statements/documents submitted alongwith bid are true and factual. ***Standard format of the affidavit to be submitted by the bidder is enclosed as annexure –I. Non submission of an affidavit by the bidder shall result in summary rejection of his/their bid.*** And it shall be mandatorily incumbent upon the tenderer to identify, state and submit the supporting documents duly self attested by which they/he is qualifying the Qualifying Criteria mentioned in the Tender Document. It will not be obligatory on the part of Tender Committee to scrutinize beyond the submitted document of tenderer as far as his qualification for the tender is concerned”

- a) **Validity of the tender:** Tenderer shall keep his tender open for a period of 45 days for single packet and 60 days for two packet system from the date of opening of the tender.(Ref. : Rly Bd's letter no- 2017/Trans/01/Policy dated 08.02.2018)

43.0 **Price Variation Clause (PVC) :-**

Price Variation Clause (PVC) shall be applicable only for contracts value (Contract Agreement value) Rs. 5.00 Crore and more irrespective of the contract completion period) {As per Railway Boards letter No.2017/Trans/01/Policy dated 08.02.2018 }.

The Price Variation Clause (PVC) of General Conditions of Contract (GCC) shall not apply to such a works contract which is either an Annual Maintenance Contract (AMC) or a Zonal Contract (As per Railway Boards letter No. 2013/CE-I/CT/O/10/PVC/Pt.I dated 27.01.2015)

- 44.0 If the date of opening happens to be a holiday, the tenders will be opened on the next working day.

- 45.0 If any plan/drawing is attached with the tender form, Rs. 200/- for plan/drawing will be levied extra.

46. Participation of Partnership Firms in works tenders: (Page 21 of GCC-2019)

- 46.1 The Partnership Firms participating in the tender should be legally valid under the provisions of the Indian Partnership Act.

- 46.2 The partnership firm should have been in existence or should have been formed prior to submission of tender. Partnership firm should have either been registered with the Registrar or the partnership deed should have been notarized prior to date of tender opening as per the Indian Partnership Act.

- 46.3 Separate identity / name should be given to the partnership firm. The partnership firm should have PAN / TAN number in its own name and PAN / TAN number in the name of any of the constituent partners shall not be considered. The valid constituents of the firm shall be called partners.

- 46.4 Once the tender has been submitted, the constitution of the firm shall not be allowed to be modified / altered / terminated during the validity of the tender as well as the currency of the

contract except when modification becomes inevitable due to succession laws etc., in which case prior permission should be taken from Railway and in any case the minimum eligibility criteria should not get vitiated. The re-constitution of firm in such cases should be followed by a notary certified Supplementary Deed. The approval for change of constitution of the firm, in any case, shall be at the sole discretion of the Railways and the tenderer shall have no claims what-so-ever. Any change in the constitution of Partnership firm after opening of tender shall be with the consent of all partners and with the signatures of all partners as that in the Partnership Deed. Failure to observe this requirement shall render the offer invalid and full EMD shall be forfeited.

If any Partner/s withdraws from the firm after opening of the tender and before the award of the contract, the offer shall be rejected. If any new partner joins the firm after opening of tender but prior to award of contract, his / her credentials shall not qualify for consideration towards eligibility criteria either individually or in proportion to his share in the previous firm. In case the tenderer fails to inform Railway beforehand about any such changes / modification in the constitution which is inevitable due to succession laws etc. and the contract is awarded to such firm, then it will be considered a breach of the contract conditions liable for determination of the contract under Clause 62 of General Conditions of Contract.

- 46.5 A partner of the firm shall not be permitted to participate either in his individual capacity or as a partner of any other firm in the same tender.
- 46.6 The tender form shall be submitted only in the name of partnership firm. The EMD shall be deposited by partnership firm through e-payment gateway or as mentioned in tender document. The EMD submitted in the name of any individual partner or in the name of authorized partner (s) shall not be considered.
- 46.7 One or more of the partners of the firm or any other person (s) shall be designated as the authorized person (s) on behalf of the firm, who will be authorized by all the partners to act on behalf of the firm through a "Power of Attorney", specially authorizing him / them to submit & sign the tender, sign the agreement, receive payment, witness measurements, sign measurement books, make correspondences, compromise / settle / relinquish any claim (s) preferred by the firm, sign "No Claim Certificate", refer all or any dispute to arbitration and to take similar such action in respect of the said tender / contract. Such "Power of Attorney" shall be notarized / registered and submitted along with the tender.
- 46.8 On issue of Letter of Acceptance (LOA) to the partnership firm, all the guarantees like Performance Guarantee, Guarantee for various Advances to the Contractor shall be submitted only in the name of the partnership firm and no splitting of guarantees among the partners shall be acceptable.
- 46.9 On issue of Letter of Acceptance (LOA), contract agreement with partnership firm shall be executed in the name of the firm only and not in the name of any individual partner.
- 46.10 In case the Letter of Acceptance (LOA) is issued to a partnership firm, the following undertakings shall be furnished by all the partners through a notarized affidavit, before signing of contract agreement.
 - (a) Joint and several liabilities:

The partners of the firm to which the Letter of Acceptance (LOA) is issued, shall be jointly and severally liable to the Railway for execution of the contract in accordance with General and Special Conditions of the Contract. The partners shall also be liable jointly and severally for the loss, damages caused to the Railway during the course of execution of the contract or due to non-execution of the contract or part thereof.

- (b) Duration of the partnership deed and partnership firm agreement:

The partnership deed/partnership firm agreement shall normally not be modified/altered/terminated during the currency of contract and the maintenance period after the work is completed as contemplated in the conditions of the contract. Any change carried out by partners in the constitution of the firm without permission of Railway, shall constitute a breach of the contract, liable for determination of the contract under Clause 62 of the General Conditions of Contract.

- (c) Governing laws: The partnership firm agreement shall in all respect be governed by and interpreted in accordance with the Indian laws.

- (d) No partner of the firm shall have the right to assign or transfer the interest right or liability in the contract without the written consent of the other partner/s and that of the Railway.

- 46.11 The tenderer shall clearly specify that the tender is submitted on behalf of a partnership firm. The following documents shall be submitted by the partnership firm, with the tender:

(a) A copy of partnership deed.

(b) A copy of Power of Attorney (duly registered as per prevailing law) in favour of the individual to tender for the work, sign the agreement etc. and create liability against the firm.

(c) An undertaking by all partners of the partnership firm that they are not blacklisted or debarred by Railways or any other Ministry / Department of the Govt. of India / any State Govt. from participation in tenders / contracts as on the date of opening of bids, either in their individual capacity or in any firm in which they were / are partners. Concealment / wrong information in regard to above shall make the contract liable for determination under Clause 62 of the General Conditions of Contract.

46.12 Evaluation of eligibility of a partnership firm:

Technical and financial eligibility of the firm shall be adjudged based on satisfactory fulfillment of the eligibility criteria laid down in Para 9.0 above by the partnership firm:

(Signature)

Signature of Tenderer(s)

(Designation)

_____ Railway Date

Date _____

SPECIAL CONDITIONS OF CONTRACT

01. The whole of the work shall be executed in conformity with the **Indian Railways Standard General Condition of Contract-September 2019** and Standard Specification for materials and works Indian Railway Unified Standard Specifications (Vol. I & II) 2010 Edition corrected upto date read in conjunction with the special conditions annexed and in the event of any conflict or contradictions between the provisions of such conditions, special conditions annexed shall prevail and decision of the Senior Divisional Engineer/Divisional Engineer in this connection will be final and binding on the contractor.
02. **DEFINITION OF DEN/Sr DEN**
The term DEN/Sr.DEN wherever appears will denote the Divisional Engineer/Sr Divisional Engineer in executive charge of the work or such person or persons who may be deputed by him to superintend the work.
03. **RATE OF NON-SCHEDULE ITEMS;**
Any item of work, the rate for which are neither covered by the schedule of the quantities attached nor included in the printed schedule of rates of USSOR- 2012 Edition with latest correction slips must first be settled in writing with incharge of const. subject to their subsequent sanction by the Railway. In case of failure by the contractor to notify the Sr DEN/Incharge that any item of work has arisen which necessitated the inclusion of another rate in the agreement shall debar him from asking any claim what-so-ever which may arisen out of that.
04. **SUPPLY OF MATERIAL BY THE RAILWAY :-**
Supply of material by the railway will be confined only to the materials specially mentioned in the applicable items of the schedule of rate USSOR- 2012 Edition. All other materials required for the work must be supplied by the contractor, tools, plants and other accessories viz scaffolding materials will be supplied by the contractor unless otherwise stated.
 - i) Materials to be supplied by the railway will be supplied in standard length and quantities or as available at the nearest rail head or at the SSE,SE/works/workshop or any where in the station yard of any where in Railway land near the station yard or at SSE,SE/works Godown or stores unless specifically mentioned otherwise and shall have to be carried by the contractor to the site of work, for which no extra payment will be made. Any damage to the materials supplied by the Railway during carriage or execution of work will be made good by the contractor.
 - ii) The railway will in no circumstances be responsible for delay in supply of the materials and the contractor shall not be entitled to any compensation what-so-ever claim on this account. The delay due to late supply will however, be given due consideration for grant of extension of time for completion of work if found necessary.
05. If the cost of the any materials issued to the contractor to be recovered from the contractor become payable by the contractor to the railway on account of any reasons, the GST, if any, will have to be paid by the contractor.
06. **SUPPLY OF MATERIALS BY THE CONTRACTOR.**
Prior to the use of all materials including shutters etc. supplied by the contractor in the works, these should be passed by Sr. DEN/DEN or his representative. The materials rejected shall be removed by the contractor at his own cost from the site of work within 24 hours.

07. **ERRORS IN DRAWING ETC.**

The contract shall not be vitiated by any error of any kind and the surveys, information, drawing or schedule of quantities. It is further provided that any drawing or schedule of quantities that will be supplied will represent the nature of work to be executed and do not necessarily represent the work as they will actually be executed. Further drawings may be issued to the contractor from time to time as required.

08. **MAINTENANCE AFTER COMPLETION;**

On the completion of work to the satisfaction of Sr DEN/DEN, it will be taken over. From that date of contractor shall be responsible for the maintenance of work for a further period of twelve calendars months. During that period he shall take immediate action to remedy and rectify any hidden defects or flaws in the workmanship which may take themselves apparent and which he may be called upon to do by the Sr. DEN/DEN may without further notice in writing to the contractor, fails to make adequate arrangement for rectification of the defects and the cost the rectification shall be recovered from the security deposit retained by the N. E. Railway, or from any other money due to the contractor under this or any other contract.

Provided also that in case of defaulting contractor the railway may retain any amount due for payment to the contractor on the pending on accounts bills so that the amount or amounts so retained may not exceed 10% of the total value of the contract.

09. Regarding earthwork the contractor will be responsible only to repair the earth work damaged during rains etc. On account of defective work not carried out as per specification by him. No claim what-so-ever will be entertained in this regard and he will have to make good the earth work so washed away or damaged.

10. **Clause 16(1) of IRSGCC -Security Deposit :- (Page 40 of GCC-2019)**

- 10.1 The Earnest Money deposited by the Contractor with his tender will be retained by the Railways as part of security for the due and faithful fulfillment of the contract by the Contractor. The Security Deposit shall be 5% of the contract value. Security Deposit may be deposited by the Contractor before release of first on account bill in cash or Term Deposit Receipt issued from Scheduled Bank, or may be recovered at the rate of 10% of the bill amount till the full Security Deposit is recovered. Provided also that in case of defaulting Contractor, the Railway may retain any amount due for payment to the Contractor on the pending "on account bills" so that the amounts so retained (including amount guaranteed through Performance Guarantee) may not exceed 10% of the total value of the contract.

Further, in case of contracts having value equal to or more than ₹ 50 crore (Rs Fifty crore) the Security Deposit may be deposited as Bank Guarantee Bond also, issued by a scheduled bank after execution of contract documents, but before payment of 1st on account bill. Provided further that the validity of Bank Guarantee Bond shall be extended from time to time, depending upon extension of contract granted in terms of Clause 17 of the Standard General Conditions of Contract.

Further, in case Security Deposit has been submitted as Term Deposit Receipt/Bank Guarantee Bond in full amount, the Earnest Money deposited by the Contractor with his tender will be returned by the Railways.

Note: After the work is physically completed as certified by competent authority, Security Deposit recovered from the running bills of a Contractor can be returned to him, if he so desires, in lieu of Term Deposit Receipt/irrevocable Bank Guarantee for equivalent amount from Scheduled Bank, to be submitted by him.

10.2 Clause 16(2)(i) of IRSGCC : Refund of Security Deposit: -Security Deposit mentioned in sub clause 16(1) above shall be returned to the Contractor after the following:

- (a) Final Payment of the Contract as per clause 51.(1) **and**
- (b) Execution of Final Supplementary Agreement or Certification by Engineer that Railway has No Claim on Contractor **and**
- (c) Maintenance Certificate issued, on expiry of the maintenance period as per clause 50.(1), in case applicable.

10.3 Clause 16. (2) (ii) of IRSGCC : - Forfeiture of Security Deposit: Whenever the contract is rescinded as a whole under clause 62 (1) of GCC, the Security Deposit already with railways under the contract shall be forfeited. However, in case the contract is rescinded in part or parts under clause 62 (1) of GCC, the Security Deposit shall not be forfeited.

10.4 Clause 16.(3) of IRSGCC : -No interest shall be payable upon the Earnest Money and Security Deposit or amounts payable to the Contractor under the Contract, but Government Securities deposited in terms of Sub-Clause 16.(4)(b) of this clause will be payable with interest accrued thereon.

10.5 Clause 16.(4) of IRSGCC : - Performance Guarantee

The procedure for obtaining Performance Guarantee is outlined below:

- (a) The successful bidder shall have to submit a Performance Guarantee (PG) within 21 (Twenty one) days from the date of issue of Letter of Acceptance (LOA). Extension of time for submission of PG beyond 21 (Twenty one) days and upto 60 days from the date of issue of LOA may be given by the Authority who is competent to sign the contract agreement. However, a penal interest of 12% per annum shall be charged for the delay beyond 21(Twenty one) days, i.e. from 22nd day after the date of issue of LOA. Further, if the 60th day happens to be a declared holiday in the concerned office of the Railway, submission of PG can be accepted on the next working day.

In all other cases, if the Contractor fails to submit the requisite PG even after 60 days from the date of issue of LOA, the contract is liable to be terminated. In case contract is terminated railway shall be entitled to forfeit Earnest Money Deposit and other dues payable against that contract. In case a tenderer has not submitted Earnest Money Deposit on the strength of their registration as a Startup recognized by Department of Industrial Policy and Promotion (DIPP) under Ministry of Commerce and Industry, DIPP shall be informed to this effect.

The failed Contractor shall be debarred from participating in re-tender for that work.

- (b) The successful bidder shall submit the Performance Guarantee (PG) in any of the following forms, amounting to 5% of the contract value:
 - (i) A deposit of Cash;
 - (ii) Irrevocable Bank Guarantee;
 - (iii) Government Securities including State Loan Bonds at 5% below the market value;
 - (iv) Deposit Receipts, Pay Orders, Demand Drafts and Guarantee Bonds. These forms of

- Performance Guarantee could be either of the State Bank of India or of any of the Nationalized Banks;
- (v) Guarantee Bonds executed or Deposits Receipts tendered by all Scheduled Banks;
 - (vi) Deposit in the Post Office Saving Bank;
 - (vii) Deposit in the National Savings Certificates;
 - (viii) Twelve years National Defence Certificates;
 - (ix) Ten years Defence Deposits;
 - (x) National Defence Bonds and
 - (xi) Unit Trust Certificates at 5% below market value or at the face value whichever is less. Also, FDR in favour of FA&CAO (free from any encumbrance) may be accepted.
- (c) The Performance Guarantee shall be submitted by the successful bidder after the Letter of Acceptance (LOA) has been issued, but before signing of the contract agreement. This P.G. shall be initially valid upto the stipulated date of completion plus 60 days beyond that. In case, the time for completion of work gets extended, the Contractor shall get the validity of P.G. extended to cover such extended time for completion of work plus 60 days.
- (d) The value of PG to be submitted by the Contractor will not change for variation upto 25% (either increase or decrease). In case during the course of execution, value of the contract increases by more than 25% of the original contract value, an additional Performance Guarantee amounting to 5% (five percent) for the excess value over the original contract value shall be deposited by the Contractor. On the other hand, if the value of contract decreases by more than 25% of the original contract value, Performance Guarantee amounting to 5% (five percent) of the decrease in the contract value shall be returned to the Contractor. The PG amount in excess of required PG for decreased contract value, available with Railways, shall be returned to Contractor as per his request duly safeguarding the interest of railways
- (e) The Performance Guarantee (PG) shall be released after physical completion of the work based on 'Completion Certificate' issued by the competent authority stating that the Contractor has completed the work in all respects satisfactorily.
- (f) Whenever the contract is rescinded, the Performance Guarantee already submitted for the contract shall be encashed in addition to forfeiture of Security Deposit available with railway.
- (g) The Engineer shall not make a claim under the Performance Guarantee except for amounts to which the President of India is entitled under the contract (not withstanding and/or without prejudice to any other provisions in the contract agreement) in the event of:
- (i) Failure by the Contractor to extend the validity of the Performance Guarantee as described herein above, in which event the Engineer may claim the full amount of the Performance Guarantee.
 - (ii) Failure by the Contractor to pay President of India any amount due, either as agreed by the Contractor or determined under any of the Clauses/Conditions of the Agreement, within 30 days of the service of notice to this effect by Engineer.
 - (iii) The Contract being determined or rescinded under clause 62 of the GCC.
- (h) The tenderer who has offered lower total cost as compared to tender value by more than 10%, shall be required to submit additional Performance Guarantee of value equal to percentage of tender value by which offer is lower than 10%.
- (i) Bank Guarantees (BGs) to be submitted by suppliers/contractors should be sent directly to the concerned authorities by issuing Bank under registered Post A.D.

11. Aggregate, and cement for all cement concrete work must be properly mixed in machine to be provided by the contractor. If available, the railway may supply machine on hire charges on written request from the contractor but such supply is not binding on the railway and no claim will lie for railways failure to supply the mixing machine. The contractor will run and maintain the machine if provided by the railway, when at his disposal of his own cost and will be responsible for returning the same in perfect working condition. The same condition applies for other machines such as vibrators etc. if provided.

12. **RECOVERY OF EMPTY CEMENT BAGS:**

In case of free supply of cement in bags by the railway the empty cement bags shall be the property of the contractor and cost of the same be recovered @ ₹ 300/- (Rs Three hundred) only per 100 (One hundred) empty cement bags. The railway however, reserves the right to take empty bags which are in good condition for its own use.

13. **Clause 52 of IRSGCC - Withholding and Lien in Respect of Sums Claimed: (Page 70 of GCC-2019)**

Whenever any claim or claims for payment of a sum of money arises out of or under the contract against the Contractor, the Railway shall be entitled to withhold and also have a lien to retain such sum or sums in whole or in part from the security, if any, deposited by the Contractor and for the purpose aforesaid, the Railway shall be entitled to withhold the said cash Security Deposit or the Security if any, furnished as the case may be and also have a lien over the same pending finalization or adjudication of any such claim. In the event of the security being insufficient to cover the claimed amount or amounts or if no security has been taken from the Contractor, the Railway shall be entitled to withhold and have a lien to the extent of the such claimed amount or amounts referred to supra, from any sum or sums found payable or which at any time thereafter may become payable to the Contractor under the same contract or any other contract with this or any other Railway or any Department of the Central Government pending finalization or adjudication of any such claim. It is an agreed term of the contract that the sum of money or moneys so withheld or retained under the lien referred to above, by the Railway will be kept withheld or retained as such by the Railways till the claim arising out of or under the contract is determined by the arbitrator (if the contract governed by the Arbitration Clause) or by the competent court as the case may be and that the Contractor will have no claim for interest or damages whatsoever on any account in respect of such withholding or retention under the lien referred to supra and duly notified as such to the Contractor. For the purpose of this clause, where the Contractor is a partnership firm or a company, the Railway shall be entitled to withhold and also have a lien to retain towards such claimed amount or amounts in whole or in part from any sum found payable to any partner / company, as the case may be whether in his individual capacity or otherwise .

14.0 **Clause 52-A of IRSGCC -Lien in Respect of Claims in other Contracts:**

(i) Any sum of money due and payable to the Contractor (including the Security Deposit returnable to him) under the contract may be withheld or retained by way of lien by the Railway, against any claim of this or any other Railway or any other Department of the Central Government in respect of payment of a sum of money arising out of or under any other contract made by the Contractor with this or any other Department of the Central Government.

(ii) However, recovery of claims of Railway in regard to terminated contracts may be made from the Final Bills, Security Deposits and Performance Guarantees of other contract or contracts, executed by the Contractor. The Performance Guarantees submitted by the Contractor against other contracts, if required, may be withheld and encashed. In addition, 10% of each subsequent 'on-account bill' may be withheld, if required, for recovery of Railway's dues against the terminated contract.

(iii) It is an agreed term of the contract that the sum of money so withheld or retained under this Clause by the Railway will be kept withheld or retained as such by the Railway till the claim arising out of or under any other contract is either mutually settled or determined by arbitration, if the other contract is governed by Arbitration Clause or by the competent court as the case may be and Contractor shall have no claim for interest or damages whatsoever on this account or on any other ground in respect of any sum of money withheld or retained under this Clause and duly notified as such to the Contractor

15.0 USE OF MATERIALS SECURED WITH GOVERNMENT ASSISTANCE:

Where any materials for the execution of the contract is procured with the assistance of Government either by issue from Govt. stocks or purchase under arrangement made on permit(s) or license(s) issued by Govt., the contractor shall hold the said materials as trustee for Govt. and use such materials economically and solely for the purpose of the contract against which they are issued and should not dispose off them without the permission of the Govt. and return, if required by the purchaser, all surplus or unserviceable materials that may be left with him, after the completion of the contract or at its termination for any reasons what-so-ever on him being paid such price by Govt., may that fixed be with due regard to the conditions of the materials. The freight charge for the return of the materials according to the directions of the purchaser shall be borne by the contractor in the event of contract being cancelled for any default on his part. The decision of the Govt. shall be final and conclusive. In the event of the breach of aforesaid conditions the contractor shall in addition to throwing himself open to action for contravention of terms of the license(s) or the permit(s) and/or for criminal breach of trust be liable to account to Govt. for all money advantage of permits resulting or which in the usual course would have resulted to him by reason of such breach.

16. If any of the materials, plant etc brought on work or supplies made by the contractor upon the site of work or on the land occupied by them are rejected by the Engineer or declared by the Engineer not to be needed for the work remain unused by that they are not removed within 60 days of rejection or declaration of grant, the Engineer shall have the right to dispose of such materials plant etc. works executed or supplies made by the contractor as he thinks fit at the contractor sole risk and on their account.

17. Clause 54 of IRSGCC Wages to Labour: (Page 72 of GCC-2019)

The Contractor shall be responsible to ensure compliance with the provision of the Minimum Wages Act, 1948 (hereinafter referred to as the "said Act") and the Rules made there under in respect of any employees directly or through petty Contractors or sub-contractors employed by him for the purpose of carrying out this contract.

If, in compliance with the terms of the contract, the Contractor supplied any labour to be used wholly or partly under the direct orders and control of the Railways whether in connection with any work being executed by the Contractor or otherwise for the purpose of the Railway such labour shall, for the purpose of this Clause, still be deemed to be persons employed by the Contractor.

If any moneys shall, as a result of any claim or application made under the said Act be directed to be paid by the Railway, such money shall be deemed to be moneys payable to the Railway by the Contractor and on failure by the Contractor to repay the Railway any moneys paid by it as aforesaid within seven days after the same shall have been demanded, the Railways shall be entitled to recover the same from Contractor's bills/Security Deposit or any other dues of Contractor with the Government of India.

18. **Clause 54-A of IRSGCC : Apprentices Act:** The Contractor shall be responsible to ensure compliance with the provisions of the Apprentices Act, 1961 and the Rules and Orders issued there under from time to time in respect of apprentices directly or through petty Contractors or sub-contractors employed by him for the purpose of carrying out the Contract.

If the Contractor directly or through petty Contractors or sub-contractors fails to do so, his failure will be a breach of the contract and the Railway may, in its discretion, rescind the contract. The Contractor shall also be liable for any pecuniary liability arising on account of any violation of the provisions of the Act.

19. **Clause 55 of IRSGCC : Provisions of Payments of Wages Act:** The Contractor shall comply with the provisions of the Payment of Wages Act, 1936 and the rules made there under in respect of all employees employed by him either directly or through petty Contractors or sub-contractors in the works. If in compliance with the terms of the contract, the Contractor directly or through petty Contractors or sub-contractors shall supply any labour to be used wholly or partly under the direct orders and control of the Engineer whether in connection with the works to be executed hereunder or otherwise for the purpose of the Engineer, such labour shall nevertheless be deemed to comprise persons employed by the Contractor and any moneys which may be ordered to be paid by the Engineer shall be deemed to be moneys payable by the Engineer on behalf of the Contractor and the Engineer may on failure of the Contractor to repay such money to the Railways deduct the same from any moneys due to the Contractor in terms of the contract. The Railway shall be entitled to recover the same from Contractor's bills/Security Deposit or any other dues of Contractor with the Government of India all moneys paid or payable by the Railway by way of compensation of aforesaid or for costs of expenses in connection with any claim thereto and the decision of the Engineer upon any question arising out of the effect or force of this Clause shall be final and binding upon the Contractor.

- 20.0 **Clause of 55-A of IRSGCC. Provisions of Contract Labour (Regulation and Abolition) Act, 1970: (Ref. Clause 55A IRSGCC, September 2019)**

- 21.0 **Clause of 55-A.(1)** The Contractor shall comply with the provision of the contract labour (Regulation and Abolition) Act, 1970 and the Contract labour (Regulation and Abolition) Central Rules 1971 as modified from time to time, wherever applicable and shall also indemnify the Railway from and against any claims under the aforesaid Act and the Rules.

- 22.0 **Clause of 55-A.(2)** The Contractor shall obtain a valid license under the aforesaid Act as modified from time to time before the commencement of the work and continue to have a valid license until the completion of the work. Any failure to fulfill the requirement shall attract the penal provision of the Act.

- 23.0 **Clause of 55-A.(3)** The Contractor shall pay to the labour employed by him directly or through sub-contractors the wages as per provision of the aforesaid Act and the Rules wherever applicable.

The Contractor shall notwithstanding the provisions of the contract to the contrary, cause to be paid the wages to labour, indirectly engaged on the works including any engaged by sub-contractors in connection with the said work, as if the labour had been immediately employed by him.

- 24.0 Clause of 55-A.(4)** In respect of all labour directly or indirectly employed in the work for performance of the Contractor's part of the contract, the Contractor shall comply with or cause to be complied with the provisions of the aforesaid Act and Rules wherever applicable.
- 25.0 Clause of 55-A.(5)** In every case in which, by virtue of the provisions of the aforesaid Act or the rules, the Railway is obliged to pay any amount of wages to a workman employed by the Contractor or his sub-contractor in execution of the work or to incur any expenditure on account of the contingent, liability of the Railway due to the Contractor's failure to fulfill his statutory obligations under the aforesaid Act or the rules, the Railway will recover from the Contractor, the amount of wages so paid or the amount of expenditure so incurred and without prejudice to the rights of the Railway under the Section 20, Sub-Section (2) and Section 2, Sub-Section (4) of the aforesaid Act, the Railway shall be at liberty to recover such amount or part thereof from Contractor's bills/Security Deposit or any other dues of Contractor with the Government of India. The Railway shall not be bound to contest any claim made against it under Sub-Section (1) of Section 20 and Sub-Section (4) of Section 21 of the aforesaid Act except on the written request of the Contractor and upon his giving to the Railway full security for all costs for which the Railway might become liable in contesting such claim. The decision of the Chief Engineer regarding the amount actually recoverable from the Contractor as stated above shall be final and binding on the Contractor.
- 26.0 Clause of 55-B of IRSGCC. Provisions of Employees Provident Fund and Miscellaneous Provisions Act, 1952:**The Contractor shall comply with the provisions of Para 30 & 36-B of the Employees Provident Fund Scheme, 1952; Para 3 & 4 of Employees' Pension Scheme, 1995; and Para 7 & 8 of Employees Deposit Linked Insurance Scheme, 1976; as modified from time to time through enactment of "Employees Provident Fund & Miscellaneous Provisions Act, 1952", wherever applicable and shall also indemnify the Railway from and against any claims under the aforesaid Act and the Rules.
- 27.0 Clause of 55-C** (i) Contractor is to abide by the provisions of various labour laws in terms of above clause 54, 55, 55-A and 55-B of Indian Railways Standard General Conditions of Contract. In order to ensure the same, an application has been developed and hosted on website 'www.shramikkalyan.indianrailways.gov.in'. Contractor shall register his firm/company etc. and upload requisite details of labour and their payment in this portal. These details shall be available in public domain. The Registration/ updation of Portal shall be done as under:
- (a) Contractor shall apply for one time registration of his company/firm etc. in the Shramikkalyan portal with requisite details subsequent to issue of Letter of Acceptance. Engineer shall approve the contractor's registration in the portal within 7 days of receipt of such request.
 - (b) Contractor once approved by any Engineer, can create password with login ID (PAN No.) for subsequent use of portal for all LoAs issued in his favour.
 - (c) The contractor once registered on the portal, shall provide details of his Letter of Acceptances (LoA) / Contract Agreements on shramikkalyan portal within 15 days of issue of any LoA for approval of

concerned engineer. Engineer shall update (if required) and approve the details of LoA filled by contractor within 7 days of receipt of such request.

- (d) After approval of LOA by Engineer, contractor shall fill the salient details of contract labours engaged in the contract and ensure updating of each wage payment to them on shramikkalyan portal on monthly basis.
- (e) It shall be mandatory upon the contractor to ensure correct and prompt uploading of all salient details of engaged contractual labour & payments made thereof after each wage period.

(ii) While processing payment of any 'On Account bill' or 'Final bill' or release of 'Advances' or 'Performance Guarantee / Security deposit', contractor shall submit a certificate to the Engineer or Engineer's representatives that "I have uploaded the correct details of contract labours engaged in connection with this contract and payments made to them during the wage period in Railway's Shramikkalyan portal at 'www.shramikkalyan.indianrailways.gov.in' till ____Month, ____Year."

Clause of 55-D :- Provisions of "The Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996" and "The Building and Other Construction Workers' Welfare Cess Act, 1996":

" The tenderers, for carrying out any construction work, shall get themselves registered with the Registering Officer under Section-7 of the Building and Other Construction Workers Welfare Cess Act, 1996 and rules made thereto by the UP/BIHAR (Name of the State) Govt., and submit certificate of Registration issued from the Registering Officer of the UP/BIHAR (Name of the State) Govt. (Labour Dept.). As per this Act, the tenderer shall be levied a cess @1% of cost of construction work, which would be deducted from each bill. Cost of material, when supplied under a separate schedule item, shall be outside the purview of cess. (Authority: Railway Board's letter no. 2008/CE-I/CT/6 dated 29.11.2013)

28. The second party (Contractor) to the agreement is/are agree to abide by the instruction/guidelines issued by Railway Board vide letter no. 2018/E(LL)/ AT/CNR/3 dated 24.01.2018. Either parties to the agreement, further, are agreed to abide by the instructions issued, vide letter no. CAIU/011(33)2015/HQ/Vol.III Date 06.02.2018, by EPF Organisation (Ministry of Labour , Govt. of India). At any point of time, if it is found, that aforesaid instructions are not followed or not being followed, the Second Party (Contractor) shall be held liable and appropriate action shall be taken under prevailing rules which includes the termination of agreement/contract. Second Party (Contractor) to the agreement is agreed that they will have no claim, in any manner, regarding any decision taken by Railway Administration (first party), if it has been taken due to any fault done by the second party (Contractor) and second party shall pay for any loss/damages occurred due to their conduct. The decision and calculations done by the first party shall be conclusive and final regarding losses/damages. Parties to the agreement are agreed that they will abide by the prevailing Laws & rules and also with the guidelines issued by the Railway Board from time to time. Parties to the agreement shall resolve their disputes in amicable manner. But if amicable solution is not possible, parties shall resolve the dispute through Arbitrator appointed under prevailing rules in Arbitrator & Reconciliation Act. However both the parties to the agreement are agreed that any case, regarding any dispute, will be filed in the jurisdiction of Civil Court /Varanasi only.
29. Metalling and carpeting of roads etc to be consolidated with road roller arranged by the contractor at his own cost and fuel. It will be supplied to the contractor if available with the railway on hire

charges recoverable from contractor with fuel and driver @ ₹ 90/- per hour for 5 Ton capacity, ` 130/- per hour for 10 (Ten) Ton capacity Road Roller and for Tractor mounted road roller 6 to 8 Tons capacity ₹ 91/- per hour. These rates are subject to revision by the Railway and on revision, recovery shall be made from the contractor at such revised rates.

30. In all works course Aggregate 6 mm to 19 mm size stone of approved quality free from dust and vegetation is to be used for all cement concrete work. No Bajri or pea gravel shall be allowed.

All reinforcement concrete work shall be done by concrete mixture and vibrator to be arranged by contractor at his expense. If available the Railway shall supply the machine at the following rates;-

Concrete Mixer ₹ 56/- Per hour

Vibrator ₹ 32/- Per hour

The rates for above machine excludes the cost of operator and fuel which shall be arranged by the contractor. These rates are subject to revision by the railway and on revision recovery shall be made from the contractor on such revised rate.

31. Each part of Chowkhat and Shutters shall be hammer marked at the time of passing with special code in token of passing. Rejected part shall also be marked with different code to avoid its use of work.
32. All paints to be used shall be either Shalimar or British paint or any paints of approved quality. The rates quoted for painting steel works/wood work shall include the cost of supplying paints and primers etc. No paint will be supplied by the railway if work is done on through rate.
33. All reinforcement shall be recorded in M.B. and initialed by contractor in token of acceptance before concreting. If contractor fails to ensure this, reinforcement as entered in M.B. shall be binding on the contractor.
34. Jack Arch shall be laid to proper slope whenever possible so that lime concrete terracing has uniform thickness.
35. In white washing only standard white lime to be used.
36. After completion of the work the site is to be cleared of the debris and other materials.
37. **CONTRACTORS GODOWN ON RAILWAYLAND :-** The contractor shall be allowed to use railway land for the purpose of storage of material required for the work at the site of work or at suitable place within the area covered by the contract agreement. No godown shall be permitted outside contract area, neither railway materials shall be taken away by the contractor outside the railway premises given for stacking purposes.

The extent of land which can be occupied by the contractor shall be restricted to 2,000 Sq.ft. and can be increased only with specified permission of the Engineer, if the situation demands. The railway land occupied for storage of materials shall be vacated by the contractor within 3 months of expiry of the contract agreement. In case of failure to comply with the said provision the occupation of railway land shall be considered as unauthorised and the contractor shall be liable to pay rent @ three times of outsiders rate for Coal and Oil plot fixed by the railway. In case contractors failure to pay rent of land hold outside the contract period or in excess of permitted or occupied for purpose

other than storage, the same shall be recoverable from his dues besides legal proceedings to vacate the land.

38. The rates offered by the contractor for all works in all groups should be for the works in all heights in all floors including parapet head/room etc. No extra payment will be made for these items otherwise provided in USSOR- 2012 Edition.
39. Hanging doors and windows with fittings will be as per provision indicated in standard drawings. In addition one sliding bolts 250 mm long with fittings on outside and 150 mm handles on inner and outside both in doors and 100 mm handles on inner side in case of windows (if not indicated in standard drawings) in place of wooden knob will have to be supplied and provided with other fixture for which no additional payment will be made.
40. Quantity against any item of work can be reduced or increased by the Engineer to suit conditions at site. This will not be item of dispute and no claim what-so-ever will be entertained on this account.
41. **RECOVERY OF MATERIALS INCLUDING CEMENT ISSUED BY THE RAILWAY BUT NOT RETURNED BY THE CONTRACTOR.**
Recovery shall be made by the railway on the basis of double of the book or the prevailing market rate whichever is higher plus freight incidental charges and supervision charges for the materials issued in excess of the requirement of the work.
42. **TECHNICAL STAFF:-**
 - (a) One Qualified Graduate Engineer where the cost of the work to be executed is ₹ 200 lakh and above.
 - (b) One Qualified Diploma Holder Engineer when the cost of the work to be executed is more than ₹ 25 lakh, but less than ₹ 200 lakh.

Technical staff should be available at site whenever required by the Engineer-in-charge to take instructions. In case the contractor fails to employ the Qualified Engineer, he shall be liable to pay amount of ₹ 40,000/- (Rs. Forty thousand) and ₹ 25000/- (Rs. Twenty five thousand) for each month or part thereof for the default period for the provisions , as contained in Para 42(a) and 42(b) above respectively.

The decision of the Engineer-in-charge as to the period for which the required technical staff was not employed by the contractor and as to the reasonableness of the amount to be deducted on this account shall be final and binding on the contractor.

VARIATIONS IN EXTENT OF CONTRACT

43. **Clause 41 of IRSGCC : - Modification to Contract to be in Writing:** (Page 57 of GCC-2019)
44. In the event of any of the provisions of the contract required to be modified after the contract documents have been signed, the modifications shall be made in writing and signed by the Railway and the Contractor and no work shall proceed under such modifications until this has been done. Any verbal or written arrangement abandoning, modifying, extending, reducing or supplementing the contract or any of the terms thereof shall be deemed conditional and shall not be binding on the Railway unless and until the same is incorporated in a formal instrument and signed by the Railway and the Contractor, and till then the Railway shall have the right to repudiate such arrangements.

45. **Clause 42.(1) of IRSGCC :- Powers of Modification to Contract:** The Engineer on behalf of the Railway shall be entitled by order in writing to enlarge or extend, diminish or reduce the works or make any alterations in their design, character position, site, quantities, dimensions or in the method of their execution or in the combination and use of materials for the execution thereof or to order any additional work to be done or any works not to be done and the Contractor will not be entitled, to any compensation for any increase/reduction in the quantities of work but will be paid only for the actual amount of work done and for approved materials supplied against a specific order.

46.

Clause of 42.(2) (i) of IRSGCC - Unless otherwise specified in the special conditions of the contract, the accepted variation in quantity of each individual item of the contract would be upto 25% of the quantity originally contracted, except in case of foundation work.

(ii) The Contractor shall be bound to carry out the work at the agreed rates and shall not be entitled to any claim or any compensation whatsoever upto the limit of 25% variation in quantity of individual item of works.

(iii) In case an increase in quantity of an individual item by more than 25% of the agreement quantity is considered unavoidable, then same shall be executed at following rates

- (a) Quantities operated in excess of 125% but upto 140% of the agreement quantity of the concerned item, shall be paid at 98% of the rate awarded for that item in that particular tender;
- (b) Quantities operated in excess of 140% but upto 150% of the agreement quantity of the concerned item shall be paid at 96% of the rate awarded for that item in that particular tender;
- (c) Variation in quantities of individual items beyond 150% will be avoided and would be permitted only in exceptional unavoidable circumstances and shall be paid at 96% of the rate awarded for that item in that particular tender.
- (d) Variation to quantities of Minor Value Item:

The limit for varying quantities for minor value items shall be 100% (as against 25% prescribed for other items). A minor value item for this purpose is defined as an item whose original agreement value is less than 1 % of the total original agreement value.

d.(i) Quantities operated upto and including 100% of the agreement quantity of the concerned minor value item, shall be paid at the rate awarded for that item in that particular tender;

d.(ii) Quantities operated in excess of 100% but upto 200% of the agreement quantity of the concerned minor value item, shall be paid at 98% of the rate awarded for that item in that particular tender;

d.(iii) Variation in quantities of individual minor value item beyond 200% will be avoided and would be permitted only in exceptional unavoidable circumstances and shall be paid at 96% of the rate awarded for that item in that particular tender.

(iv) In case of earthwork, the variation limit of 25% shall apply to the gross quantity of earthwork and variation in the quantities of individual classifications of soil shall not be subject to this limit.

(v) In case of foundation work, no variation limit shall apply and the work shall be carried out by the Contractor on agreed rates irrespective of any variation.

(vi) As far as SOR items are concerned, the limit of 25% would apply to the value of SOR schedule as a whole and not on individual SOR items. However, in case of NS items, the limit of 25% would apply on the individual items irrespective of the manner of quoting the rate (single percentage rate or individual item rate).

Clause of 42.(3) of IRSGCC Valuation of Variations: (Page 58 of GCC-2019)

The enlargements, extensions, diminution, reduction, alterations or additions referred to in Sub-Clause 42(2) of this Clause shall in no degree affect the validity of the contract; but shall be performed by the Contractor as provided therein and be subject to the same conditions, stipulations and obligations as if they had been originally and expressively included and provided for in the Specifications and Drawings and the amounts to be paid therefor shall be calculated in accordance with the accepted Schedule of Rates. Any extra items/quantities of work falling outside the purview of the provisions of Sub-Clause 42(2) above shall be paid for at the rates determined under Clause-39 of these Conditions.

47. Handling Vitiating during Variation in Contract Quantities :

It will be applicable as per **para 1.0** of Railway Board's letter no. 2017/Trans/01/Policy Dated 08.02.2018.

48.0 46A. Price Variation Clause (PVC): (Page 62 of GCC-2019)**Clause 46A of IRSGCC : - PVC CLAUSE IN WORKS CONTRACT:**

Price Variation Clause (PVC) shall be applicable only for contracts value (Contract Agreement value) Rs. 5.00 Crore and more irrespective of the contract completion period) {As per Railway Boards letter No.2017/Trans/01/Policy dated 08.02.2018 }.

The Price Variation Clause (PVC) of General Conditions of Contract (GCC) shall not apply to such a works contract which is either an Annual Maintenance Contract (AMC) or a Zonal Contract (As per Railway Boards letter No. 2013/CE-I/CT/O/10/PVC/Pt.I dated 27.01.2015)

Clause of 46A.1 Applicability: Materials supplied free of cost by Railway to the Contractors and any extra NS item(s) included in subsequent variation falling outside the purview of the Schedule of Items of tender shall fall outside the purview of Price Variation Clause. If, in any case, accepted offer includes some specific payment to be made to consultants or some materials supplied by Railway free or at fixed rate, such payments shall be excluded from the gross value of the work for the purpose of payment/recovery of price variation.

Clause of 46A.2 Base Month: The Base Month for 'Price Variation Clause' shall be taken as month 28 days prior to opening of tender including extensions, if any, unless otherwise stated elsewhere. The quarter for applicability of PVC shall commence from the month following the month of opening of tender. The Price Variation shall be based on the average Price Index of the quarter under consideration.

Clause of 46A.3 Validity:

Rates accepted by Railway Administration shall hold good till completion of work and no additional individual claim shall be admissible except:

(a) Payment/recovery for increase/decrease in GST on works contract or imposition/removal of any tax/cess on Works Contract as per Clause 37,

(b) Payment/recovery for overall market situation as per Price Variation Clause given hereunder.

Clause of 46A.4 Adjustment for variation in prices of material, labour, fuel, explosives, detonators, steel, concreting, ferrous, non-ferrous, insulators, zinc and cement shall be determined in the manner prescribed.

Clause of 46A.5 Components of various items in a contract on which variation in prices be admissible, shall be Material, Labour, Fuel, Explosives & Detonators, Steel, Cement, Concreting, Ferrous, Non-ferrous, Insulator, Zinc, Erection etc. However, for fixed components, no price variation shall be admissible.

Clause of 46A.6 The percentages of labour component, material component, fuel component etc. in various types of Engineering contracts shall be as under:

Sl. No	Component	E/Work & Minor Bridges Contracts, Ballast Supply Contracts, Tunneling Contracts (without explosive)	Tunneling Contracts (with explosive s)	Major and Important Bridges Contracts	Building Contracts	Permanen t Way linking Contracts (Manual)	Other Works Contract s
1	Labour Component	20	20	20	40	50	20
2	Other Material Components	10	15	30	35	5	20
3	Plant Machinery & Spares	30	15	20	5	15	30
4	Fuel & Lubricants Component	25	15	15	5	15	15
5	Fixed Component*	15	15	15	15	15	15
6	Detonators & Explosive Component	-	20	-	-	-	-

* It shall not be considered for any price variation.

Clause of 46A.7 Formulae: The Amount of variation in prices in several components (labour, material etc.) shall be worked out by the following formulae:

$$\begin{aligned}
 \text{(i)} \quad L &= \frac{W \times (L_Q - L_B)}{L_B} \times \frac{L_C}{100} \\
 \text{(ii)} \quad M &= \frac{W \times (M_Q - M_B)}{M_B} \times \frac{M_C}{100} \\
 \text{(iii)} \quad F &= \frac{W \times (F_Q - F_B)}{F_B} \times \frac{F_C}{100}
 \end{aligned}$$

$$\begin{aligned}
 \text{(iv)} \quad E &= \frac{W \times (E_Q - E_B)}{E_B} \times \frac{E_C}{100} \\
 \text{(v)} \quad PM &= \frac{W \times (PM_Q - PM_B)}{PM_B} \times \frac{PM_C}{100} \\
 \text{(vi)} \quad S &= \frac{S_W \times (S_Q - S_B)}{S_B} \\
 \text{(vii)} \quad C &= C_V \times (C_Q - C_B) / C_B
 \end{aligned}$$

For Railway Electrification Works:

$$\begin{aligned}
 \text{(viii)} \quad T &= [(C_S - C_O) / C_O \times 0.4136] \times T_C \\
 \text{(ix)} \quad R &= [(R_T - R_O) / R_O + (Z_T - Z_O) / Z_O \times 0.06] \times R_C \\
 \text{(x)} \quad N &= [(P_T - P_O) / P_O] \times N_C \\
 \text{(xi)} \quad Z &= [(Z_T - Z_O) / Z_O] \times Z_C \\
 \text{(xii)} \quad I &= [(I_T - I_O) / I_T] \times 85
 \end{aligned}$$

Where,

L	Amount of price variation in Labour
M	Amount of price variation in Materials
F	Amount of price variation in Fuel
E	Amount of price variation in Explosives
PM	Amount of price variation in Manufacture of machinery for mining, Quarrying and Construction
S	Amount of price variation in Steel
C	Amount of price variation in Cement
T	Amount of price variation in Concreting
R	Amount of price variation in Ferrous Items
N	Amount of price variation in Non-Ferrous Items
Z	Amount of price variation in Zinc
I	Amount of price variation in Insulator
L _C	% of Labour Component
M _C	% of Material Component
F _C	% of Fuel Component
E _C	% of Explosive Component
PM _C	% of Manufacture of machinery for mining, Quarrying and Construction Component
T _C	% of Concreting Component
R _C	% of Ferrous Component
N _C	% of Non-Ferrous Component
Z _C	% of Zinc Component
W	Gross value of work done by Contractor as per on-account bill(s) excluding cost of materials supplied by Railway at fixed price, minus the price values of cement and steel. This will also exclude specific payment, if any, to be made to the consultants engaged by Contractors (such payment shall be indicated in the Contractor's offer)
L _B	Consumer Price Index for Industrial Workers - All India : Published in R.B.I. Bulletin for the base period

L _Q	Consumer Price Index for Industrial Workers - All India : Published in R.B.I. Bulletin for the average price index of the 3 months of the quarter under consideration
M _B	Wholesale Price Index: All commodities – as published in the R.B.I. Bulletin for the base period
M _Q	Wholesale Price Index: All commodities – as published in the R.B.I. Bulletin for the average price index of the 3 months of the quarter under consideration
F _B	Wholesale Price Index for the group Fuel & Power as published in the R.B.I. Bulletin for the base period
F _Q	Index Number of Wholesale Price Index – By Groups and Sub-Groups for the group Fuel & Power as published in the R.B.I. Bulletin for the average price index of the 3 months of the quarter under consideration
E _B	Index number of Monthly Whole Sale Price Index for the category ‘Explosive’ of (g).Manufacture of other chemical products under (J). MANUFACTURE OF CHEMICALS AND CHEMICAL PRODUCTS, published by Office of Economic Adviser, Govt. of India, Ministry of Commerce & Industry, Department of Industrial Policy & Promotion (DIPP), for the base period.
E _Q	Index number of Monthly Whole Sale Price Index for the category ‘Explosive’ of (g).Manufacture of other chemical products under (J). MANUFACTURE OF CHEMICALS AND CHEMICAL PRODUCTS, published by Office of Economic Adviser, Govt. of India, Govt. of India, Ministry of Commerce & Industry, Department of Industrial Policy & Promotion (DIPP), for the average price index of 3 months of the quarter under consideration.
PM _B	Index number of Monthly Whole Sale Price Index for the category ‘k. Manufacture of machinery for mining, quarrying and construction’ under (R) MANUFACTURE OF MACHINERY AND EQUIPMENT, published by Office of Economic Adviser, Govt. of India, Ministry of Commerce & Industry, Department of Industrial Policy & Promotion (DIPP), for the base period.
PM _Q	Index number of Monthly Whole Sale Price Index for the category ‘k. Manufacture of machinery for mining, quarrying and construction’ under (R) MANUFACTURE OF MACHINERY AND EQUIPMENT, published by Office of Economic Adviser, Govt. of India, Ministry of Commerce & Industry, Department of Industrial Policy & Promotion (DIPP), for the average price index of 3 months of the quarter under consideration.
S _W	Gross value of steel supplied by the Contractor as per the ‘on-account’ bill for the month under consideration
S _B	Index number of Monthly Whole Sale Price Index for the relevant category of mild steel item as mentioned in Clause 46A.9, published by Office of Economic Adviser, Govt. of India, Ministry of Commerce & Industry Department of Industrial Policy & Promotion (DIPP); for the base period.
S _Q	Index number of Monthly Whole Sale Price Index for the relevant category of mild steel item as mentioned in Clause 46A.9, published by Office of Economic Adviser, Govt. of India, Ministry of Commerce & Industry Department of Industrial Policy & Promotion (DIPP); for the average price index of the 3 months of the quarter under consideration.
C _V	Value of Cement supplied by Contractor as per on account bill in the quarter under consideration
C _B	Index No. of Wholesale Price Index of sub-group Cement, Lime & Plaster as published in RBI Bulletin for the base period

C _Q	No. of Wholesale Price Index of sub-group Cement, Lime & Plaster as published in RBI Bulletin for the average price index of the 3 months of the quarter under consideration
C _S	RBI wholesale price index for Cement, Lime & Plaster for the month which is six months prior to date of casting of foundation
C _O	RBI wholesale price index for Cement, Lime & Plaster for the month which is one month prior to date of opening of tender
R _T	IEEMA price index for Iron & Steel for the month which is two months prior to date of inspection of material.
R _O	IEEMA price index for Iron & Steel for the month which is one month prior to date of opening of tender.
P _T	IEEMA price index for Copper wire bar for the month which is two months prior to date of inspection of material.
P _O	IEEMA price index for Copper wire bar for the month which is one month prior to date of opening of tender.
Z _T	IEEMA price index for Zinc for the month which is two months prior to date of inspection of material
Z _O	IEEMA price index for Zinc for the month which is one month prior to date of opening of tender
I _T	RBI wholesale price index for the sub-group “other Portland and Ceramic product” for the month which is two months prior to date of inspection of material
I _O	RBI wholesale price index for the sub-group “other Portland and Ceramic product” for the month which is one month prior to date of opening of tender

Clause of 46A.8 of IRSGCC The demands for escalation of cost shall be allowed on the basis of provisional indices as mentioned above in Clause 46A.7. Any adjustment needed to be done based on the finally published indices shall be made as and when they become available.

Clause of 46A.9 of IRSGCC: Relevant categories of steel for the purpose of operating Price Variation formula as mentioned in this Clause shall be as under:

SL	Category of Steel Supplied in Railway Work	Category of Steel Items as mentioned in Office of Economic Adviser, Govt. of India, Ministry of Commerce & Industry Department of Industrial Policy & Promotion (DIPP).
1.	Reinforcement bars and other rounds	‘MS Bright Bars’ individual commodity of group item (d) Mild Steel-Long Products under (N) MANUFACTURE OF BASIC METAL.
2.	All types and-sizes of angles, channels and joists	‘Angles, Channels, Sections, Steel’ individual commodity of group item (d) Mild Steel-Long Products under (N) MANUFACTURE OF BASIC METAL.
3.	All types and sizes of plates	‘e. Mild Steel – Flat Products’ of (N) MANUFACTURER OF BASIC METAL.
4.	Any other section of steel not covered in the above categories and excluding HTS	Average of price for the 3 categories covered under SL 1, 2 & 3 above

Clause of 46A.10 - Price Variation during Extended Period of Contract

The price adjustment as worked out above, i.e. either increase or decrease shall be applicable upto the stipulated date of completion of work including the extended period of completion where such extension has been granted under Clause 17-A of the Standard General Conditions of Contract. However, where extension of time has been granted due to Contractor's failure under Clause 17-B of the Standard General Conditions of Contract, price adjustment shall be done as follows:

a. In case the indices increase above the indices applicable to the last month of original completion period or the extended period under Clause 17-A, the price adjustment for the period of extension granted under Clause 17-B shall be limited to the amount payable as per the Indices applicable to the last month of the original completion period or the extended period under Clause 17-A of the Standard General Conditions of Contract; as the case may be.

b. In case the indices fall below the indices applicable to the last month of original/extended period of completion under Clause 17-A, as the case may be; then the lower indices shall be adopted for the price adjustment for the period of extension under Clause 17-B of the Standard General Conditions of Contract.

49.0 Conservancy cess charges shall be recovered from the contractor's bill @ given below:

SN	Average no. of labourers/workman employed per day	Conservancy cess charges to be recovered (per month)
1.	1 to 5	₹ 106/-
2	6 to 10	₹ 208/-
3	11 to 25	₹ 523/-
4	26 to 50	₹ 762/-
5	51 to 100	₹ 1023/-
6	101 to 200	₹ 1285/-
7	201 to 300	₹ 1546/-
8.	301 to 750	₹ 1785/-
9	751 to 1500	₹ 3590/-
10	1501 to 3000	₹ 7182/-
11.	3001 and over	₹ 14345/-

50.0 Minimum Eligibility Criteria for Tenders Costing above ₹ 50 Lakhs :-**(Page 12 of GCC-2019)**

The offers of tenderers fulfilling the following Eligibility Criteria will only be considered Valid:

1.	Similar nature of work successfully completed during the last 07 (Seven) years, ending last day of month previous to the one in which tender is invited.	Eligibility in terms of Experience: 9.1(a) The tenderer must have successfully completed any of the following during last 07 (seven) years, ending last day of month previous to the one in which tender is invited: Three similar works each costing not less than the amount equal to 30% of advertised value of the tender or Two similar works each costing not less than the amount equal to 40% of advertised value of the tender or One similar work each costing not less than the amount equal to 60% of advertised value of the tender. 9.1(b) (i) In case of composite works (e.g. works involving more than one distinct component, such as Civil Engineering works, S&T works, Electrical works, OHE works etc. and in the case of major bridges – substructure, superstructure etc.), tenderer must have successfully completed any of the following during last 07 (seven) years, ending last day of month previous to the one in which tender is invited: Three similar works each costing not less than the amount equal to 30% of advertised value of each component of tender, or Two similar works each costing not less than the amount equal to 40% of advertised value of each component of tender, or One similar work each costing not less than the amount equal to 60% of advertised value of each component of tender. Note: Separate completed works of minimum required values for each component shall also be considered for fulfillment of technical eligibility criteria.
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		(b) (ii) In such cases, what constitutes a component in a composite work shall be clearly predefined with estimated tender cost of it, as part of the tender documents without any ambiguity. Any work or set of works shall be considered to be a separate component, only when cost of the component is more than ₹ 2 crore each. Note for Item 9.1: <i>Work experience certificate from private individual shall not be considered.</i> However, in addition to work experience certificates issued by any Govt. Organisation, work experience certificate issued by Public listed company having average annual turnover of Rs 500 crore and above in last 3 financial years excluding the current financial year, listed on National Stock Exchange or Bombay Stock Exchange, incorporated/registered atleast 5 years prior to the date of opening of tender, shall also be considered provided the work experience certificate has been issued by a person authorized by the Public listed company to issue such certificates. In case tenderer submits work experience certificate issued by public listed company, the tenderer shall also submit along with work experience certificate, the relevant copy of work order, bill of quantities, bill wise details of payment received duly certified by Chartered Accountant, TDS certificates for all payments received and copy of final/last bill paid by company in support of above work experience certificate. <i>[As per Annexure –B attached in tender document]</i>
2.	The tenderer must have received contractual payments in the previous three financial years and the current financial year upto the date of opening of tender, at least 150% of the advertised value of the tender	The tenderers shall submit Certificates to this effect which may be an attested Certificate from the concerned department / client and/or Audited Balance Sheet duly certified by the Chartered Accountant etc.

51.0 Earnest Money:- [Only through online payment modes] (Page 4 of GCC-2019)

- (A) The tenderer shall be required to deposit earnest money with the tender for the due performance of the stipulation to keep the offer open till such date as specified in the Tender, under the conditions of Tender. The earnest money should be as under :-

Value of the Work Earnest Money Deposit (EMD)

i)	For works estimated to cost up to Rs.1.00 Crore	2% of the estimated cost of the work
ii)	For works estimated to cost more than Rs.1.00 Crore.	₹ 2.00 Lakhs plus ½% (half percent) of the excess of estimated cost of work beyond ₹ 1.00 Crore subject to a maximum of ₹ 1.00 Crore.
(i)	The earnest money shall be rounded to the nearest ₹ 100. This earnest money shall be applicable for all modes of tendering.	
(ii)	Any firm recognized by Department of Industrial Policy and Promotion (DIPP) as 'Startups' shall be exempted from payment of earnest money deposit detailed above.	

- (B) **Payment of EMD and TDC :-** Payment of Earnest Money deposit (EMD) & Tender Document Cost (TDC), in respect of e-tendering, should be accepted through net banking or payment gateway only.

Note :- Fixed Deposit Receipt (FDR) will not be accepted as EMD for tenders invited on IREPS (e-tender portal).

- (C) Fifteen days prior to opening of tender, during which tenderers can submit their offer.
[Railway Board's letter No. 2015/CE-I/CT/5/1 dated 31.08.2016]

- 51.1 The final tender documents (including all uploaded documents), available on the IREPS website on the date of opening of tender against this NIT shall form the basic document for execution of contract agreement.
- 51.2 Tenderer (s) have to submit their bid online on IREPS website only. Any offer made through any other mode shall be ignored.
- 51.3 Vehicles and Equipments of contractors can be drafted by Railway administration in case of accidents/ natural calamities involving human lives. The payment for vehicles/ Equipments so drafted by Railways will be made as Non schedule item as per the extant norms and powers delegated.

52.0 **CLAIMS** (Page 59 of GCC-2019)

Clause of 43.(1) - Quarterly Statement of Claims: The Contractor shall prepare and furnish to the Engineer once in every quarter commencing from the month following the month of issue of Letter of Acceptance, an account giving full and detailed particulars of all claims for any additional expenses to which the Contractor may consider himself entitled to and of all extra or additional works ordered by the Engineer which he has executed during the preceding ~~month~~ quarter and no claim for payment for such work will be considered which has not been included in such particulars.

Clause of 43.(2) -Signing of "No Claim" Certificate : The Contractor shall not be entitled to make any claim whatsoever against the Railway under or by virtue of or arising out of this contract, nor shall the Railway entertain or consider any such claim, if made by the Contractor, after he shall have signed a "No Claim" Certificate in favour of the Railway in such form as shall be required by the Railway after the works are finally measured up. The Contractor shall be debarred from disputing the correctness of the items covered by "No Claim" Certificate or demanding a clearance to arbitration in respect thereof.

53.0 **Clause 62.(2) Right of Railway after Rescission of Contract owing to Default of Contractor:** In the event of any or several of the courses, referred to in Sub-Clause(1) of this Clause, being adopted:

(a) The Contractor shall have no claim to compensation for any loss sustained by him by reason of his having purchased or procured any materials or entered into any commitments or made any advances on account of or with a view to the execution of the works or the performance of the contract and Contractor shall not be entitled to recover or be paid any sum for any work thereto for actually performed under the contract unless and until the Engineer shall have certified the performance of such work and the value payable in respect thereof and the Contractor shall only be entitled to be paid the value so certified.

(b) In the contract which has been rescinded as a whole, the Security Deposit already with railways under the contract shall be encashed/ forfeited and the Performance Guarantee already submitted for the contract shall be encashed. The balance work shall be got done independently without risk & cost of the failed Contractor. The failed Contractor shall be debarred from participating in the tender for executing the balance work. If the failed Contractor is a JV or a Partnership firm, then every member/partner of such a firm shall be debarred from participating in the tender for the balance work in his/her individual capacity or as a partner of any other JV /partnership firm.

Further the authorized representative of failed Contractor cannot be accepted as authorized representative in new contract.

(c) In the contract rescinded in part or parts,

(i) The full Performance Guarantee for the contract shall be recovered. No additional Performance Guarantee shall be required for balance of work being executed through the part terminated contract. The contract value of part terminated contract stands reduced to the balance value of work under the contract.

(ii) The Security Deposit of part terminated contract shall be dealt as per clause 16(2) of GCC.

(iii) The defaulting Contractor shall not be issued any completion certificate for the contract.

(iv) The balance work shall be got done independently without risk & cost of the failed Contractor. The failed Contractor shall be debarred from participating in the tender for executing the balance work. If the failed Contractor is a JV or a Partnership firm, then every member/partner of such a firm shall be debarred from participating in the tender for the balance work in his/her individual capacity or as a partner of any other JV /partnership firm.

(v) Further the authorized representative of failed Contractor will not be accepted as authorized representative in new contract.

(d) The Engineer or the Engineer's Representative shall be entitled to take possession of any materials, tools, implements, machinery and buildings on the works or on the property on which these are being or ought to have been executed, and to retain and employ the same in the further execution of the works or any part thereof until the completion of the works without the Contractor being entitled to any compensation for the use and employment thereof or for wear and tear or destruction thereof.

(e) The Engineer shall as soon as may be practicable after removal of the Contractor fix and determine ex-parte or by or after reference to the parties or after such investigation or enquiries as he may consider fit to make or institute and shall certify what amount (if any) had at the time of rescission of the contract been reasonably earned by or would reasonably accrue to the Contractor in respect of the work then actually done by him under the contract and what was the value of any unused, or partially used materials, any constructional plant and any temporary works upon the site. The legitimate amount due to the Contractor after making necessary deductions and certified by the Engineer should be released expeditiously.

54.0 SETTLEMENT OF DISPUTES – INDIAN RAILWAY ARBITRATION AND CONCILIATION RULES :- (Page 82 of GCC-2019)

Clause of 63 - Reconciliation of disputes: All disputes and differences of any kind whatsoever arising out of or in connection with the contract, whether during the progress of the work or after its completion and whether before or after the determination of the contract, shall be referred by the Contractor to the "Chief Engineer" or "Divisional Railway Manager" through "Notice of Dispute" provided that no such notice shall be served later than 30 days after the date of issue of Completion Certificate by the Engineer. Chief Engineer or Divisional Railway Manager shall, within 30 days after receipt of the Contractor's "Notice of Dispute", notify the name of conciliator(s) to the Contractor.

The Conciliator(s) shall assist the parties to reach an amicable settlement in an independent and impartial manner within the terms of contract.

If the parties reach agreement on a settlement of the dispute, they shall draw up and sign a written settlement agreement duly signed by Engineer In-charge, Contractor and conciliator(s). When the parties sign the settlement agreement, it shall be final and binding on the parties.

The parties shall not initiate, during the conciliation proceedings, any arbitral or judicial proceedings in respect of a dispute that is the subject matter of the conciliation proceedings.

The conciliation proceedings shall be terminated as per Section 76 of 'The Arbitration and Conciliation Act, 1996.

Clause of 63.1 Matters Finally Determined by the Railway: All disputes and differences of any kind whatsoever arising out of or in connection with the contract, whether during the progress of the work or after its completion and whether before or after the determination of the contract, shall be referred by the Contractor to the GM and the GM shall, within 120 days after receipt of the Contractor's representation, make and notify decisions on all matters referred to by the Contractor in writing provided that matters for which provision has been made in Clauses 8, 18, 22(5), 39, 43(2), 45(a), 55, 55-A(5), 57, 57A, 61(1), 61(2) and 62(1) of Standard General Conditions of Contract or in any Clause (stated as excepted matter) of the Special Conditions of the Contract, shall be deemed as 'excepted matters' (matters not arbitrable) and decisions of the Railway authority, thereon shall be final and binding on the Contractor; provided further that 'excepted matters' shall stand specifically excluded from the purview of the Arbitration Clause.

Clause of 64.(1) : Demand for Arbitration: (Page 83 of GCC-2019)

Clause of 64.(1)(i): In the event of any dispute or difference between the parties hereto as to the construction or operation of this contract, or the respective rights and liabilities of the parties on any matter in question, dispute or difference on any account or as to the withholding by the Railway of any certificate to which the Contractor may claim to be entitled to, or if the Railway fails to make a decision within 120 days, then and in any such case, but except in any of the "excepted matters" referred to in Clause 63.1 of these Conditions, the Contractor, after 120 days but within 180 days of his presenting his final claim on disputed matters shall demand in writing that the dispute or difference be referred to arbitration.

Clause of 64.(1)(ii)(a): The demand for arbitration shall specify the matters which are in question, or subject of the dispute or difference as also the amount of claim item-wise. Only such dispute or difference, in respect of which the demand has been made, together with counter claims or set off, given by the Railway, shall be referred to arbitration and other matters shall not be included in the reference.

Clause of 64.(1)(ii)(b): The parties may waive off the applicability of Sub-Section 12(5) of Arbitration and Conciliation (Amendment) Act 2015, if they agree for such waiver in writing, after dispute having arisen between them, in the format given under Annexure 6 of these conditions.

Clause of 64.(1)(iii)(a): The Arbitration proceedings shall be assumed to have commenced from the day, a written and valid demand for arbitration is received by the Railway.

Clause of 64.(1)(iii)(b): The claimant shall submit his claims stating the facts supporting the claims alongwith all the relevant documents and the relief or remedy sought against each claim within a period of 30 days from the date of appointment of the Arbitral Tribunal.

Clause of 64.(1)(iii)(c): The Railway shall submit its defence statement and counter claim(s), if any, within a period of 60 days of receipt of copy of claims from Tribunal, unless otherwise extension has been granted by Tribunal.

Clause of 64.(1)(iii)(d): Place of Arbitration: The place of arbitration would be within the geographical limits of the Division of the Railway where the cause of action arose or the Headquarters of the concerned Railway or any other place with the written consent of both the parties.

Clause of 64.(1)(iv): No new claim shall be added during proceedings by either party. However, a party may amend or supplement the original claim or defense thereof during the course of arbitration proceedings subject to acceptance by Tribunal having due regard to the delay in making it.

Clause of 64.(1)(v): If the Contractor(s) does/do not prefer his/their specific and final claims in writing, within a period of 90 days of receiving the intimation from the Railways that the final bill is ready for payment, he/they will be deemed to have waived his/their claim(s) and the Railway shall be discharged and released of all liabilities under the contract in respect of these claims.

Clause of 64.(2): Obligation During Pendency of Arbitration: Work under the contract shall, unless otherwise directed by the Engineer, continue during the arbitration proceedings, and no payment due or payable by the Railway shall be withheld on account of such proceedings, provided, however, it shall be open for Arbitral Tribunal to consider and decide whether or not such work should continue during arbitration proceedings.

Clause of 64.(3) : Appointment of Arbitrator:

Clause of 64.(3)(a) : Appointment of Arbitrator where applicability of section 12 (5) of Arbitration and Conciliation Act has been waived off:

64.(3)(a)(i): In cases where the total value of all claims in question added together does not exceed ₹ 1,00,00,000/- (Rupees One Crore), the Arbitral Tribunal shall consist of a Sole Arbitrator who shall be a Gazetted Officer of Railway not below Junior Administrative Grade, nominated by the General Manager. The sole arbitrator shall be appointed within 60 days from the day when a written and valid demand for arbitration is received by General Manager.

Clause of 64.(3)(a)(ii): In cases not covered by the Clause 64(3)(a)(i), the Arbitral Tribunal shall consist of a panel of three Gazetted Railway Officers not below Junior Administrative Grade or 2 Railway Gazetted Officers not below Junior Administrative Grade and a retired Railway Officer, retired not below the rank of Senior Administrative Grade Officer, as the arbitrators. For this purpose, the Railway will send a panel of at least four (4) names of Gazetted Railway Officers of one or more departments of the Railway which may also include the name(s) of retired Railway Officer(s) empanelled to work as Railway Arbitrator

to the Contractor within 60 days from the day when a written and valid demand for arbitration is received by the General Manager. Contractor will be asked to suggest to General Manager at least 2 names out of the panel for appointment as Contractor's nominee within 30 days from the date of dispatch of the request by Railway. The General Manager shall appoint at least one out of them as the Contractor's nominee and will, also simultaneously appoint the balance number of arbitrators either from the panel or from outside the panel, duly indicating the 'presiding arbitrator' from amongst the 3 arbitrators so appointed. General Manager shall complete this exercise of appointing the Arbitral Tribunal within 30 days from the receipt of the names of Contractor's nominees. While nominating the arbitrators, it will be necessary to ensure that one of them is from the Accounts Department. An officer of Selection Grade of the Accounts Department shall be considered of equal status to the officers in Senior Administrative Grade of other departments of the Railway for the purpose of appointment of arbitrator.

Clause of 64.3.(a).iii: The serving railway officer working in arbitral tribunal in the ongoing arbitration cases as per clause 64.(3)(a)(i) and clause 64.(3)(a)(ii) above, can continue as arbitrator in the tribunal even after his retirement.

Clause of 64.(3)(b): Appointment of Arbitrator where applicability of Section 12 (5) of Arbitration and Conciliation Act has not been waived off:

(i) In cases where the total value of all claims in question added together does not exceed ₹ 50,00,000/- (Rupees Fifty Lakh), the Arbitral Tribunal shall consist of a Retired Railway Officer, retired not below the rank of Senior Administrative Grade Officer, as the arbitrator. For this purpose, the Railway will send a panel of at least four (4) names of retired Railway Officer(s) empanelled to work as Railway Arbitrator duly indicating their retirement dates to the Contractor within 60 days from the day when a written and valid demand for arbitration is received by the General Manager. Contractor will be asked to suggest to General Manager at least 2 names out of the panel for appointment as arbitrator within 30 days from the date of dispatch of the request by Railway. The General Manager shall appoint at least one out of them as the arbitrator. (ii) In cases where the total value of all claims in question added together exceed ₹ 50,00,000/- (Rupees Fifty Lakh), the Arbitral Tribunal shall consist of a Panel of three (3) retired Railway Officer, retired not below the rank of Senior Administrative Grade Officer, as the arbitrators. For this purpose, the Railway will send a panel of at least four (4) names of retired Railway Officer(s) empanelled to work as Railway Arbitrator duly indicating their retirement date to the Contractor within 60 days from the day when a written and valid demand for arbitration is received by the General Manager. Contractor will be asked to suggest to General Manager at least 2 names out of the panel for appointment as Contractor's nominee within 30 days from the date of dispatch of the request by Railway. The General Manager shall appoint at least one out of them as the Contractor's nominee and will, also simultaneously appoint the balance number of arbitrators either from the panel or from outside the panel, duly indicating the 'Presiding Arbitrator' from amongst the 3 arbitrators so appointed. General Manager shall complete this exercise of appointing the Arbitral Tribunal within 30 days from the receipt of the names of Contractor's nominees.

While nominating the arbitrators, it will be necessary to ensure that one of them has served in the Accounts Department.

Clause of 64.(3)(c)(i): If one or more of the arbitrators appointed as above refuses to act as arbitrator, withdraws from his office as arbitrator, or vacates his/their office/offices or is/are unable or unwilling to perform his functions as arbitrator for any reason whatsoever or dies or in the opinion of the General Manager fails to act without undue delay, the General Manager shall appoint new arbitrator/arbitrators to act in his/their place in the same manner in which the earlier arbitrator/arbitrators had been appointed. Such re-constituted Tribunal may, at its discretion, proceed with the reference from the stage at which it was left by the previous arbitrator (s).

Clause of 64.(3) (c) (ii): (a) The Arbitral Tribunal shall have power to call for such evidence by way of affidavits or otherwise as the Arbitral Tribunal shall think proper, and it shall be the duty of the parties hereto to do or cause to be done all such things as may be necessary to enable the Arbitral Tribunal to make the award without any delay. The proceedings shall normally be conducted on the basis of documents and written statements.

(b) Before proceeding into the merits of any dispute, the Arbitral Tribunal shall first decide and pass its orders over any plea submitted/objections raised by any party, if any, regarding appointment of Arbitral Tribunal, validity of arbitration agreement, jurisdiction and scope of the Tribunal to deal with the dispute (s) submitted to arbitration, applicability of time 'limitation' to any dispute, any violation of agreed procedure regarding conduct of the arbitral proceedings or plea for interim measures of protection and record its orders in day to day proceedings. A copy of the proceedings duly signed by all the members of tribunal should be provided to both the parties.

Clause of 64.3(c)(iii): (i) Qualification of Arbitrator (s):

(a) Serving Gazetted Railway Officers of not below JA Grade level.

(b) Retired Railway Officers not below SA Grade level, one year after his date of retirement.

(c) Age of arbitrator at the time of appointment shall be below 70 years.

(ii) An arbitrator may be appointed notwithstanding the total number of arbitration cases in which he has been appointed in the past.

(iii) While appointing arbitrator(s) under Sub-Clause 64.(3)(a)(i), 64.(3)(a)(ii), 64.(3)(b)(i) & 64.(3)(b)(ii) above, due care shall be taken that he/they is/are not the one/those who had an opportunity to deal with the matters to which the contract relates or who in the course of his/their duties as Railway servant(s) expressed views on all or any of the matters under dispute or differences. A certification to this effect as per annexure- 7 shall be taken from Arbitrators also. The proceedings of the Arbitral tribunal or the award made by such Tribunal will, however, not be invalid merely for the reason that one or more arbitrator had, in the course of his service, opportunity to deal with the matters to which the contract relates or who in the course of his/their duties expressed views on all or any of the matters under dispute.

Clause of 64.(3)(d)(i): The arbitral award shall state item wise, the sum and reasons upon which it is based. The analysis and reasons shall be detailed enough so that the award could be inferred therefrom.

Clause of 64.(3)(d)(ii): A party may apply for corrections of any computational errors, any typographical or clerical errors or any other error of similar nature occurring in the award of a Tribunal and interpretation of a specific point of award to Tribunal within 60 days of receipt of the award.

Clause of 64.(3)(d)(iii): A party may apply to Tribunal within 60 days of receipt of award to make an additional award as to claims presented in the arbitral proceedings but omitted from the arbitral award.

Clause of 64.(4): In case of the Tribunal, comprising of three members, any ruling on award shall be made by a majority of members of Tribunal. In the absence of such a majority, the views of the Presiding Arbitrator shall prevail.

Clause of 64.(5): Where the arbitral award is for the payment of money, no interest shall be payable on whole or any part of the money for any period till the date on which the award is made.

Clause of 64. (6): The cost of arbitration shall be borne by the respective parties. The cost shall inter-alia include fee of the arbitrator(s), as per the rates fixed by Railway Board from time to time and the fee shall be borne equally by both the parties, provided parties sign an agreement in the format given at Annexure 6 to these condition after/ while referring these disputes to Arbitration. Further, the fee payable to the arbitrator(s) would be governed by the instructions issued on the subject by Railway Board from time to time irrespective of the fact whether the arbitrator(s) is/are appointed by the Railway Administration or by the court of law unless specifically directed by Hon'ble court otherwise on the matter.

Clause of 64.(7) Subject to the provisions of the aforesaid Arbitration and Conciliation Act 1996 and the rules thereunder and relevant para of General Conditions of Contract (GCC) and any statutory modifications thereof shall apply to the appointment of arbitrators and arbitration proceedings under this Clause.

55.0 PAYMENT :

90 % of payment shall be made on completion of an item of work. Balance 10% shall be paid after released and issued materials and tools and plant have been returned back to satisfaction of Engineer-in-charge. Statutory recoveries and contractual recoveries shall, however, be made from such payment.

56.0 Care in Submission of Tenders : (Page 5 of GCC-2019)

(a) (i) Before submitting a tender, the tenderer will be deemed to have satisfied himself by actual inspection of the site and locality of the works, that all conditions liable to be encountered during the execution of the works are taken into account and that the rates he enters in the tender forms are adequate and all inclusive to accord with the provisions in Clause-37 of the Standard General Conditions of Contract for the completion of works to the entire satisfaction of the Engineer.

(a)(ii) Tenderers will examine the various provisions of The Central Goods and Services Tax Act, 2017(CGST)/ Integrated Goods and Services Tax Act, 2017(IGST)/ Union Territory Goods and Services Tax Act, 2017(UTGST)/ respective state's State Goods and Services Tax Act (SGST) also, as notified by Central/State Govt. & as amended from time to time and applicable taxes before bidding. Tenderers will ensure that full benefit of Input Tax Credit (ITC) likely to be availed by them is duly considered while quoting rates.

(a)(iii) The successful tenderer who is liable to be registered under CGST/IGST/UTGST/SGST Act shall submit GSTIN along with other details required under CGST/IGST/UTGST/SGST Act to railway immediately after the award of contract, without which no payment shall be released to the Contractor. The Contractor shall be responsible for deposition of applicable GST to the concerned authority.

(a)(iv) In case the successful tenderer is not liable to be registered under CGST/IGST/UTGST/SGST Act, the railway shall deduct the applicable GST from his/their bills under reverse charge mechanism (RCM) and deposit the same to the concerned authority.

(b) When work is tendered for by a firm or company, the tender shall be signed by the individual legally authorized to enter into commitments on their behalf.

(c) The Railway will not be bound by any power of attorney granted by the tenderer or by changes in the composition of the firm made subsequent to the execution of the contract. It may, however, recognize such power of attorney and changes after obtaining proper legal advice, the cost of which will be chargeable to the Contractor.

[R.B. letter's No. 2017/CE-I/CT/4/GST Dated 23.06.2017]

57.0 Implementation of GST Act, 2017- **Procedure for payment of Contractual Bill :-**

1. On Indian Railways presently 'work executed by contractor' is recorded in measurement books by railway, duly accepted by contractor. Railway prepares 'on account/ final contract certificated' for the payable amount based on the work executed and the rates quoted by the contractor duly deducting various statutory taxes like – work contract tax / service tax/royalties/income tax etc. as per applicable rates. Further, railways deposit the statutory deductions themselves to the concerned authorities.

2. With GST act in force , it will be the responsibility of service providers (i.e. contractors) to submit the invoice (bill) duly segregating the GST component from the Gross amount of work executed.

3. Railways are therefore advised to follow the procedure as mentioned below while dealing with contractor's payment, once GST is applicable.

(A) (i) All works contracts are to be provided with goods/service code based on the type of contract . In case contract consists of both goods & service, then interpretation regarding nature of contract shall be done as per clause 8, Chapter III of CGST Act, 2017. The goods/service code is notified by Ministry of Finance and can be downloaded from the website www.cbec.gov.in

(ii) The 'on account / final contract certificate' shall be prepared by the Railway on the basis of quantity of work executed and agreemental rates, duly segregating the GST component as detailed in para (iii) below.

(iii) Since the agreemental rates of contracts are inclusive of all taxes as per clause 37 of GCC, the calculation of 'Gross amount of work executed'. 'Amount of work executed excluding GST amount' and 'GST amount' in the 'on account / final contract certificate' shall be done as under :

Let Z = Gross amount of work executed on the basis of quantum of work executed and agreemental rates.

X = Amount of work executed excluding GST amount.

Y = GST amount as per applicable GST rate for that goods/service code.

R = Percentage rate of GST for that goods/service code

Then , $Z = X+Y$, $Y = X*R/100$

(iv) Percentage rate of GST for various types of goods/services as finalised by GST council can be downloaded from the website www.cbec.gov.in.

(B) (i) Once the 'on account / final contract certificate' is prepared by railway and communicated to contractor, the contractor shall submit invoice (bill) on his Letter head duly segregating the 'Amount of work executed excluding GST amount' and 'GST amount' (i.e. "X" & "Y" as mentioned in para 3(A)(iii) above) along with Invoice No. (bill No.) and all other details required under GST act. The sample GST compliant invoice is annexed herewith.

(ii) In case contractor is liable to be registered under GST Act, Railway shall pay to the contractor 'Gross amount of work executed' (i.e. "Z" as mentioned in para 3A(iii) above) duly deducting all other leviable taxes like I/Tax, labour cess royalty etc. as applicable. Contractor shall be liable to pay 'GST amount' to respective authority himself. Whereas, railway shall deposit all other taxes deducted to concerned authority as is being done presently.

(iii) In case contractor is not liable to be registered under GST Act, contractor shall be paid "Amount of work executed excluding GST amount" (i.e. "X" as mentioned in para 3A(iii) above) duly deducting all other leviable taxes like I/Tax, labour cess, royalty etc. as applicable. Railway shall deposit 'GST amount' as well as all other taxes deducted to concerned authority.

(iv) In case any need arises to modify the Invoice (Bill) due to any reason, contractor shall submit amended fresh invoice for processing the payment.

Annexure

1. Supplier Name
2. Supplier GSTIN
3. Invoice No.
4. Invoice Issue Date
5. Total Value
6. Taxable Value
7. Goods A/c HSN, Services Accounting Code
8. Goods and Services Description
9. Unit Qty Code
10. Quantity
11. Rate
12. Whether eligible for ITC- Partial/Full/Nil
13. IGST Rate
14. IGST Charges Amt :
15. CGST Rate
16. CGST Charges Amt.
17. SGST/UGST Rate
18. SGST Charges Amount
19. Cess Rate
20. Cess Charges Amt.
21. Name/Recipient of Services/Goods

- 22. Place of Supply
- 23. Recipient GSTIN
- 24. Tax Payable on Reverse Charge Basis (Y/N)
- 25. TDS

[R.B. letter's No. 2017/CE-I/CT/12/GST/Pt. I Dated 29.06.2017]

58.0 ***“This tender complies with Public Procurement Policy Order 2017 dated 15.06.2017”*** (Authority Rly. Boards L.No.2015/RS(G)/779/5 dated 16-03-2018). The full details of the order can be seen at <http://dipp.nic.in/whats-new/public-procurement-preference-make-india-order-2017>

59. Clause of 37 :- Rates for Items of Works: (Page 54 of GCC-2019)

(i) The rates, entered in the accepted Schedule of Rates of the Contract are intended to provide for works duly and properly completed in accordance with the General and Special (if any) Conditions of the Contract and the Specifications and drawings together with such enlargements, extensions, diminutions, reductions, alterations or additions as may be ordered in terms of Clause 42 of these conditions and without prejudice to the generality thereof and shall be deemed to include and cover superintendence and labour, supply, including full freight of materials, stores, patterns, profiles, moulds, fittings, centerings, scaffolding, shoring props, timber, machinery, barracks, tackle, roads, pegs, posts, tools and all apparatus and plant required on the works, except such tools, plant or materials as may be specified in the contract to be supplied to the Contractor by the Railway, the erection, maintenance and removal of all temporary works and buildings, all watching, lighting, bailing, pumping and draining, all prevention of or compensation for trespass, all barriers and arrangements for the safety of the public or of employees during the execution of works, all sanitary and medical arrangements for labour camps as may be prescribed by the Railway, the setting of all work and of the construction, repair and upkeep of all centre lines, bench marks and level pegs thereon, site clearance, all fees duties, royalties, rent and compensation to owners for surface damage or taxes and impositions payable to local authorities in respect of land, structures and all material supplied for the work or other duties or expenses for which the Contractor may become liable or may be put to under any provision of law for the purpose of or in connection with the execution of the contract and all such other incidental charges or contingencies as may have been specially provided for in the Specifications.

However, if rates of existing GST or cess on GST for Works Contract is increased or any new tax /cess on Works Contract is imposed by Statute after the date of opening of tender but within the original date of completion/date of completion extended under clause 17 & 17A and the Contractor thereupon properly pays such taxes/cess, the Contractor shall be reimbursed the amount so paid.

Further, if rates of existing GST or cess on GST for Works Contract is decreased or any tax/cess on Works Contract is decreased / removed by Statute after the date of opening of

tender, the reduction in tax amount shall be recovered from Contractor's bills/Security Deposit or any other dues of Contractor with the Government of India.

SPECIAL CONDITION FOR SUPPLY OF STEEL AND CEMENT

1. Cement and steel for use in the works should be procured by the contractor from the main producers/their authorized dealers/authorized stock yards which should conform to BIS specifications.
2. Cement bags preferably in proper bag packings should bear the following information in legible markings.
 - i) Manufacture's name.
 - ii) Registered Trade mark of manufacture, if any.
 - iii) Type of cement.
 - iv) Weight of each bag in Kgs or No. of bags/Tonne.
- v) Date of manufacture, generally marked as week of the year/year of manufacture e.g. 30/93 which means 30th week of 1993.
1. To ensure quality control, test certificate from the manufactures should be procured by the contractors, which should confirm to the relevant specifications (latest may be incorporated).
2. Railway may also take samples during the course of work and get the cement and steel tested to ascertain their conformity to specifications.
5. Tests on the samples to be carried out in the field should be as given below:

Tests on cement to be as per IS 4031. Some of the tests which may be carried out are:

 - i) Compressive strength.
 - ii) Initial and final setting time.
 - iii) Consistency.
 - iv) Soundness.
6. Tests on steel samples will be carried out as per BIS specification.
7. In work cement is being supplied by the contractor. As per special conditions the contract, the test certificate from the manufacture is required to be produced. This is not a fool proof method. In addition to the test certificate from the manufacturer, the purchases bill should be insisted upon and sample should be taken from each lot and get tested ensure the quality of cement being used for safety works.

STEEL:

- i) The reinforcement steel will confirm to IS 432 for plain bars and IS 1786 for **Hys BARS**
- ii) The contractor will have to submit the Manufacturer Certificate for each lot of steel brought at site stock will be taken by the Engineer's representative for testing in a recognized Lab. specified by the Engineer-Incharge at the contractor's cost.
- iii) The stock of steel brought at site will remain in the joint custody of IOW Incharge and the contractor with dual locking system. The receipt issue and balance in hand statement in the form of a register will be maintained jointly signed for each transaction.
- iv) Only actual quantity of steel used for the work will be paid for. The off cuts etc. will be taken back by the contractor and will not be paid for.

SPECIAL CONDITIONS FOR
Letter of Credit as Mode of Payment in works tenders
(Applicable for Advertise Value Rs. 10 Lakh or above)

(As per Railway Board's letter no. 2018/CE-I/CT/9 DATED 04.06.2018)

- (i) For all the tenders having advertised cost of Rs 10 lakh or above, the contractor shall have the option to take payment from Railways through a letter of credit (LC) arrangement.
- (ii) This option of taking payment through LC arrangement has to be exercised in IREPS (Indian Railway Electronic Procurement System) the e-application on which tenders are called by Railways by the tenderer at the time of bidding itself, and the tenderer shall affirm having read over and agreed to the terms and conditions of the LC option.
- (iii) The option so exercised, shall be an integral part of the bidder's offer.
- (iv) The above option of taking payment through LC arrangement, once exercised by tenderer at the time of bidding, shall be final and no change shall be permitted, thereafter, during execution of contract.
- (v) In case tenderer opts for payment through LC, following shall be the procedure to deal release of payment through LC:
 - .(a) The LC shall be a sight LC
 - (b) The contractor shall select his Advising/Negotiating bank for LC. The incidental cost towards issue of LC and its operation thereof shall be borne by the contractor.
 - (c) SBI, New Delhi, Main Branch will be the nodal branch for issue of LCs based on online requests received from Railway Accounts Units for tenders opened in financial year 2018-19. SBI branches where the respective Railway Accounts Office has its Account (local SBI branch) will be the issuance/reimbursing branch for LC issued under this arrangement. The Bank shall remain same for this tender till completion of contract. The incidental cost @0.15% per annum of LC value, towards issue of LC and operation thereof shall be borne by the contractor and shall be recovered from his bills.
 - (d) The LC shall be opened initially for duration of 180 to 365 days in consultation with contractor. The LC shall be extended time to time as per the progress of the contract, on the request of the contractor. The value of LC to be opened initially as well as extended thereafter shall be finalised by the engineer in consultation with the contractor on the basis of expected progress of work.

- (e) The LC terms and conditions shall inter-alia indemnify and save harmless the Railway from and against all losses, claims and demands of every nature and description brought or recovered against the Railways by reason of any act or omission of the contractor, his ,agents or employees, in relation to the Letter of Credit (LC). All sums payable/borne by Railways on this account shall be considered as reasonable compensation and paid by contractor.
- (F) The LC terms and conditions shall inter-alia provide that Railways will issue a Document of Authorisation (format enclosed as Annexure 4) after passing the bill for completed work, to enable contractor to claim the authorized amount from their bank.
- (g) The acceptable, agreed upon document for payments to be released under the LC shall be the Document of Authorisation.
- (h) The Document of Authorisation shall be issued by Railway Accounts Office against each bill passed by Railways.
- (i) On issuance of Document of Authorisation, a copy of Document of Authorisation shall be posted on IREPS for download by the contractor. A digitally signed copy of Document of Authorisation shall also be sent by Railway Accounts Office to Railway's bank (Local SBI Branch).
- (j) The contractor shall take print out of the Document of Authorisation available on IREPS and present his claim to his bank (advising Bank) for necessary payments as per LC terms and conditions. The claim shall comprise of copy of Document of Authorisation, Bill of Exchange and Bill.
- (k) The payment against LC shall be subject to verification from Railway's Bank (Local SBI Branch).
- (l) The contractor's bank (advising bank) shall submit the documents to the Railway's Bank (Local SBI Branch).
- (m) The railway's bank (issuing bank) shall, after verifying the claim so received w.r.t. the digitally signed Document of Authorisation received from Railway Accounts Office, release the payment to contractor's bank (advising bank) for crediting the same to contractor's account.
- (n) Any number of bills can be dealt within one LC, provided the sum total of payments to contractor is within the amount for which LC has been opened.
- (o) The LC shall be closed after the release of final payment including PVC amount, if any, to the contractor.
- (p) The release of performance guarantee or security deposit shall be dealt directly by railway with the contractor i.e., not through LC.

GUIDELINES FOR PARTICIPATION OF JOINT VENTURE FIRMS IN WORKS TENDER**(Clause 17.0 Page 16 of GCC-2019)****(JV is applicable in the tenders valuing Rs.10 Crore & more)**

1. Separate identity/name shall be given to the Joint Venture.
2. Number of members in a JV shall not be more than three, if the work involves only one department (say Civil or S&T or Electrical or Mechanical) and shall not be more than five, if the work involves more than one Department. One of the members of the JV shall be its Lead Member who shall have a majority (at least 51%) share of interest in the JV. The other members shall have a share of not less than 20% each in case of JV with upto three members and not less than 10% each in case of JV with more than three members. In case of JV with foreign member(s), the Lead Member has to be an Indian firm/company with a minimum share of 51%.
3. A member of JV shall not be permitted to participate either in individual capacity or as a member of another JV in the same tender.
4. The tender form shall be purchased and submitted only in the name of the JV and not in the name of any constituent member.
5. Earnest Money Deposit (EMD) shall be deposited by JV or authorized person of JV through e-payment gateway or as mentioned in tender document.
6. A copy of Memorandum of Understanding (MoU) duly executed by the JV members on a stamp paper, shall be submitted by the JV alongwith the tender. The complete details of the members of the JV, their share and responsibility in the JV etc. particularly with reference to financial, technical and other obligations shall be furnished in the MoU. (The MoU format for this purpose shall be finalized by the Railway in consultation with their Law Branch and shall be enclosed alongwith the tender).JV-1
7. Once the tender is submitted, the MoU shall not be modified / altered / terminated during the validity of the tender. In case the tenderer fails to observe/comply with this stipulation, the full Earnest Money Deposit (EMD) shall be liable to be forfeited.
8. Approval for change of constitution of JV shall be at the sole discretion of the Railway. The constitution of the JV shall not be allowed to be modified after submission of the tender bid by the JV, except when modification becomes inevitable due to succession laws etc., provided further that there is no change in qualification of minimum eligibility criteria by JV after change of composition. However, the Lead Member shall continue to be the Lead Member of the JV. Failure to observe this requirement would render the offer invalid.
9. Similarly, after the contract is awarded, the constitution of JV shall not be allowed to be altered during the currency of contract except when modification become inevitable due to succession laws etc. and minimum eligibility criteria should not get vitiated. Failure to observe this stipulation shall be deemed to be breach of contract with all consequential penal action as per contract conditions.

10. On award of contract to a JV, a single Performance Guarantee shall be submitted by the JV as per tender conditions. All the Guarantees like Performance Guarantee, Bank Guarantee for Mobilization Advance, Machinery Advance etc. shall be accepted only in the name of the JV and no splitting of guarantees amongst the members of the JV shall be permitted.
11. On issue of LOA (Letter of Acceptance), the MOU/ JV agreement between members of the JV to whom the work has been awarded, with the same shareholding pattern as was declared in the MOU/JV Agreement submitted alongwith the tender, shall be got registered before the Registrar of the Companies under 'The Companies Act -2013' (in case of Company) or before the Registrar/Sub-Registrar under the 'The Indian Partnership Act, 1932' (in case of Partnership Firm) or under 'The LLP Act 2008' (in case of LLP). A separate PAN shall be obtained for this entity. The documents pertaining to this entity including its PAN shall be furnished to the Railways before signing the contract agreement for the work. In case the tenderer fails to observe/comply with this stipulation within 60 days of issue of LOA, contract is liable to be terminated. In case contract is terminated railway shall be entitled to forfeit the full amount of the Earnest Money Deposit and other dues payable to the Contractor under this contract. This Joint Venture Agreement shall have, inter-alia, following Clauses.
 - 11.1 Joint And Several Liability - Members of the JV to which the contract is awarded, shall be jointly and severally liable to the Railway for execution of the project in accordance with General and Special Conditions of Contract. The JV members shall also be liable jointly and severally for the loss, damages caused to the Railways during the course of execution of the contract or due to non-execution of the contract or part thereof.
 - 11.2 Duration of the Joint Venture Agreement - It shall be valid during the entire currency of the contract including the period of extension, if any and the maintenance period after the work is completed.
 - 11.3 Governing Laws - The Joint Venture Agreement shall in all respect be governed by and interpreted in accordance with Indian Laws.
12. Authorized Member - Joint Venture members in the JV MoU shall authorize one of the members on behalf of the Joint Venture to deal with the tender, sign the agreement or enter into contract in respect of the said tender, to receive payment, to witness joint measurement of work done, to sign measurement books and similar such action in respect of the said tender/contract. All notices/correspondences with respect to the contract would be sent only to this authorized member of the JV.
13. No member of the Joint Venture shall have the right to assign or transfer the interest right or liability in the contract without the written consent of the other members and that of the Railway in respect of the said tender/contract.
14. Documents to be enclosed by the JV alongwith the tender:
 - 14.1 In case one or more of the members of the JV is/are partnership firm(s), following documents shall be submitted:
 - (a) A copy of the Partnership Deed,

- (b) A copy of consent of all the partners or individual authorized by partnership firm, to enter into the Joint Venture Agreement on a stamp paper,
- (c) A copy of Power of Attorney (duly registered as per prevailing law) in favour of the individual to sign the MOU/JV Agreement on behalf of the partnership firm and create liability against the firm.

14.2 In case one or more members is/are Proprietary Firm or HUF, the following documents shall be enclosed:

A copy of notarized affidavit on Stamp Paper declaring that his/her Concern is a Proprietary Concern and he/she is sole proprietor of the Concern OR he/she is in position of "KARTA" of Hindu Undivided Family (HUF) and he/she has the authority, power and consent given by other partners to act on behalf of HUF.

14.3 In case one or more members of the JV is/are companies, the following documents shall be submitted:

- (a) A copy of resolutions of the Directors of the Company, permitting the company to enter into a JV agreement,
- (b) A copy of Memorandum and Articles of Association of the Company.
- (c) A copy of Authorization/copy of Power of Attorney issued by the Company (backed by the resolution of Board of Directors) in favour of the individual to sign the tender, sign MOU/JV Agreement on behalf of the company and create liability against the company.

14.4 All the Members of JV shall certify that they are not blacklisted or debarred by Railways or any other Ministry / Department / PSU (Public Sector Undertaking) of the Govt. of India/State Govt. from participation in tenders/contract on the date of opening of bids either in their individual capacity or as a member of the JV in which they were/are members.

15 Credentials & Qualifying Criteria: Technical, financial eligibility and Bid capacity of the JV shall be adjudged based on satisfactory fulfillment of the following criteria:

15.1 Technical Eligibility Criteria ('a' or 'b' mentioned hereunder):

(a) For Works without composite components

The technical eligibility for the work as per para 9.1 above, shall be satisfied by either the 'JV in its own name & style' or 'lead member of the JV'. Each **other** member of JV shall have technical capacity of minimum 10% of the cost of work i.e., each JV member must have satisfactorily completed during the last 07 (seven) years, ending last day of month previous to the one in which tender is invited, one similar single work for a minimum of 10% of advertised value of the tender.

(b) For works with composite components

- (i) The technical eligibility for each component of work as per para 9.1 above, shall be satisfied by either the 'JV in its own name & style' or 'lead member of the JV'. Each **other** member of JV shall have technical capacity of minimum 10% of the cost of any component of work i.e., each JV member must have satisfactorily completed during the last 07 (seven) years, ending last day of month previous to the one in which tender

is invited, one similar single work for a minimum of 10% of cost of any component of work.

OR

- (ii) The technical eligibility for major component of work as per para 9.1 above, shall be satisfied by either the 'JV in its own name & style' or 'lead member of the JV' and technical eligibility for other components of work as per para 9.1 above, shall be satisfied by either the 'JV in its own name & style' or 'any member of the JV'. Each **other** member of JV shall have technical capacity of minimum 10% of the cost of any component of work. i.e., each JV member must have satisfactorily completed during the last 07 (seven) years, ending last day of month previous to the one in which tender is invited, one similar single work for a minimum of 10% of cost of any component of work

Note for Clause 15.1:

- (a) *The Major component of the work for this purpose shall be the component of work having highest value. In cases where value of two or more component of work is same, any one work can be classified as Major component of work.*
- (b) *Value of a completed work done by a Member in an earlier JV shall be reckoned only to the extent of the concerned member's share in that JV for the purpose of satisfying his/her compliance to the above mentioned technical eligibility criteria in the tender under consideration.*

15.2 Financial Eligibility Criteria

The JV shall satisfy the requirement of "Financial Eligibility" mentioned at para 9.2 above. The "financial capacity" of the lead partner of JV shall not be less than 51% of the financial eligibility criteria mentioned at para 9.2 above.

The arithmetic sum of individual "financial capacity" of all the members shall be taken as JV's "financial capacity" to satisfy this requirement.

Note: Contractual payment received by a Member in an earlier JV shall be reckoned only to the extent of the concerned member's share in that JV for the purpose of satisfying compliance of the above mentioned financial eligibility criteria in the tender under consideration.

15.3 Bid Capacity

The JV shall satisfy the requirement of "Bid Capacity" requirement mentioned at para 10.0 above (Instructions to Tenderer). The arithmetic sum of individual "Bid capacity" of all the members shall be taken as JV's "Bid capacity" to satisfy this requirement.

Annexure JV – 1

NORTH EASTERN RAILWAY

[ENGINEERING DEPARTMENT-OPEN LINE]**MEMORANDUM OF UNDERSTANDING [MOU] FOR JOINT VENTURE PARTICIPATION**

[To be executed on non-judicial stamp paper of appropriate value in accordance with relevant stamp Act. The stamp paper is to be issued in the name of the Joint Venture Firm].

**JOINT VENTURE PARTICIPATION
BETWEEN**

[indicate the name of member] having its registered office at [indicate the address of the member] represented by their [indicate designation/capacity e.g Manager/General manager/Director/Managing Director/ Partner/Managing Partner/Proprietor etc.], Shri. [indicate the name] aged aboutyears, S/o Shri [indicate the name of father] resident of [indicate Address] [hereinafter known as authorized signatory of the member] in the capacity of Lead Member of the first part.

AND

[indicate the name of member] having its registered office at [indicate the address of the member] represented by their [indicate designation/capacity e.g manager/General manager/Director/Managing Director/ Partner/Managing Partner/Proprietor etc.], Shri. [indicate the name] aged aboutyears, S/o Shri [indicate the name of father] resident of [indicate Address] [hereinafter known as authorized signatory of the member] in the capacity of the constituent member of the other part.

[In case of more than two members, include the details accordingly].

Now, the Joint Venture Firm [JV] formed by the members i.e.[indicate name of lead member] and [indicate name of constituent member] and [indicate name of other constituent member] will be known as [indicate JV firm name and address].

The expressions [indicate name of the lead member] and [indicate name of the constituent members], shall whatever the context admits, mean and include their respective legal representatives, successors-in-interest and assigns, and shall collectively be referred to as **“Joint Venture Firm”** and individually as the **“Member”**

WHEREAS; President of India, acting through Ministry of Railways, **North Eastern Railway DRM/Engg./Varanasi** [hereinafter referred to as **“Employer”**] has invited Tender for “[indicate name of work as mentioned in Notice inviting Tender]”.

NOW, THEREFORE, THE MEMBERS AGREE AS FOLLOWS:

1. The **‘Members’** have studied the documents and have agreed to submit their Tender as Joint Venture [JV] Firm.

The following documents shall be deemed to form and be read and construed as an integral part of this MOU.

- i] Notice inviting Tender,
- ii] Tender document,
- iii] Any Addendum/Corrigendum issued by [North Eastern Railway, Engg. Department], and
- iv] The Tender for work submitted by Joint Venture Firm through Authorized member.

2. [indicate the name of the Lead Member] shall be the **“Lead member”** of the JV Firm, for all intents and purposes having majority share [i.e 51% or more] in Joint Venture Firm and who have also successfully completed any of the following during last 07 (seven) years, ending last day of month previous to the one in which tender is invited.(As per technical eligibility criteria mentioned in para 9.1)

3. The ‘Members’ resolve that the distribution of share of Financial, Technical, and other responsibilities of the constituent members of JV Firm is as under:

(a) [indicate name and Address of Lead Member] **Share%**

Lead Member

(b) [indicate name and Address of Constituent Member] **Share%**

Constituent Member

(c) [indicate name and Address of Other Constituent Member] **Share%**

Other Constituent Member

4. **JOINT AND INDIVIDUAL RESPONSIBILITY**

The Members undertake that they shall be jointly and individually liable to the Employer [Railways] for execution of the work in accordance with General and Special Conditions of Contract. The JV members shall also be liable jointly and severally for the loss, damages caused to the Employer [Railways] during the course of execution of the contract or due to non-execution of the contract or part thereof.

5. **ASSIGNMENT AND THIRD PARTIES**

No member of the Joint Venture firm shall have the right to assign or transfer the interest, right or liability in the contract without the written consent of the other members and that of the Employer [Railways] in respect of the said tender/contract.

6. **AUTHORIZED MEMBER**

We, authorize [indicate lead member or any one of the constituent member of JV firm nominated as authorized member], as **Authorized member** represented by their authorized signatory Shri. [indicate the name] to act on behalf of the Joint Venture Firm to deal with the tender, sign the

agreement or enter into contract in respect of the said tender/contract, to receive payment, to witness joint measurement of work done, to sign measurement books and similar such action in respect of the said tender/ contract. However, authorized member shall not submit any such proposals, clarifications or commitments without securing clearance of other JV constituents[s].

All notices/correspondences with respect to the tender/contract would be sent by Employer [Railways] **only to the authorized signatory of Authorized member at the address of JV firm.** All such notices/correspondences sent by Employer shall be legally binding on all the members of the J.V Firm.

7. GUARANTEES AND BONDS

Earnest Money Deposit and all bonds/guarantees to the Employer [Railways] shall be submitted in the name JV Firm, which shall be legally binding on all the members of the J.V Firm.

8. INDEMNITY

Each member hereto agrees to indemnify the other members against its respective parts in case of breach/default of the respective part of the contract/tender of any liabilities sustained by the Joint Venture Firm.

9. For the execution of the respective portions of works, the members shall make their own arrangements to bring the required finance, plants and equipment, materials, manpower and other resources.

10. DOCUMENTS and CONFIDENTIALITY.

Each member shall maintain confidentiality regarding the information related to the tender/contract, commercial and technical information received or generated in the course of preparation and submission of the Tender.

11. ARBITRATION

Any dispute, controversy or claim arising out of or relating to this agreement shall be settled in the first instance amicably between the members. If an amicable settlement cannot be reached as above, it will be settled by arbitration in accordance with the Indian Arbitration and Conciliation Act 1996 or any amendments thereof. The Venue of the arbitration shall be **VARANASI**. Notwithstanding settlement of any dispute among the members of the JV Firm , the JV members shall ensure satisfactory completion of awarded work as per the contract with the Employer [Railways].

12. VALIDITY

This MOU shall remain in force till the occurrence of the earliest of the following, unless by mutual consent, the members agree in writing to extend the validity for a further period

- a. Tender submitted by the joint venture Firm is declared unsuccessful, or

- b. Cancellation/shelving of the work by the Employer [Railways] for any reasons prior to award of work. In case, the Tender submitted by the joint venture Firm is declared successful; the validity of this MOU shall be up to the entire period of completion [inclusive of period of extension, if any] including maintenance period.

13. This MOU is drawn innumber of copies with equal legal strength and status. One copy is held by [indicate name of lead member] and the other by [indicate name of constituent member] and [indicate name of other constituent member] and one copy submitted with the tender to Employer [Railways].

14. This MOU shall in all respects be governed by and interpreted in accordance with Indian Laws.

15. **NOTICES/CORRESPONDANCE**

All Notices/Correspondence by Employer [Railways] in writing shall be sent by Fax confirmed, by registered post or commercial courier to the following Fax number and address.

[Indicate name of authorized signatory of authorized member, name and address of JV Firm with Fax number]

16. **JV Agreement.**

We the constituent member of the JV Firm are aware that after issue of Letter of Acceptance by the Employer [Railways], an agreement among the members of the JV firm has to be executed and got registered before the Registrar of Companies under the Companies Act or with the Registrar/Sub-Registrar under the Registration Act. This agreement shall be submitted by the JV firm to the Employer [Railways] as per Standard J.V. Agreement format before signing the contract agreement for the work. In case the JV members fail to observe/comply with stipulations, the Earnest Money Deposit, deposited with the Employer [Railways] shall be forfeited and other penal actions due shall be taken against the members and the JV Firm by the Employer [Railways].

17. We, the members of JV Firm shall furnish along with the tender, requisite documents as mentioned under para 15.1, 15.2, 15.3 [as the case may be] of the Guidelines for Participation of J.V. firms in works tender.

18. **Declaration**

It is certified that we are not blacklisted or debarred by the Railways or any other Ministries/Departments/PSU[Public Sector Undertaking] of the Govt. of India/State Govt. from participation in tenders /contracts on the date of opening of Tender either in our individual capacity or as a member of the JV Firm in which we were/are members. Information herein, if found incorrect, shall authorise Railways to terminate the agreement and recover damages as awarded by the Arbitrator appointed under the Provision of Arbitration Act. IN WITNESS WHEREOF THE MEMBERS, have executed this MOU on [indicate day, month and year].

[indicate name of authorized signatory]

[indicate name of authorized signatory]

[indicate name and address of lead member]

[indicate name and address of constituent member]

[Seal]

[Seal]

Witness:

1..... [Name and Address]

2..... [Name and Address]

Annexure JV - 2**JOINT VENTURE AGREEMENT FOR JOINT VENTURE PARTICIPATION**

[The J.V. Agreement to be executed on non-judicial stamp paper of appropriate value, in accordance with relevant stamp Act. The stamp paper is to be issued in the name of the Joint Venture Firm and should not be more than six months old from the date of execution of the J.V. Agreement, on it]

**JOINT VENTURE AGREEMENT
BETWEEN**

[indicate the name of member] having its registered office at [indicate the address of the member] represented by their [indicate designation/capacity e.g Manager/General manager/Director/Managing Director/ Partner/Managing Partner/Proprietor etc.], Shri. [indicate the name] aged aboutyears, S/o Shri [indicate the name of father] resident of [indicate Address] [hereinafter known as authorized signatory of the member] in the capacity of Lead Member of the first part.

And

[indicate the name of member] having its registered office at [indicate the address of the member] represented by their [indicate designation/capacity e.g manager/General manager/Director/Managing Director/ Partner/Managing Partner/Proprietor etc.], Shri. [indicate the name] aged aboutyears, S/o Shri [indicate the name of father] resident of [indicate Address] [hereinafter known as authorized signatory of the member] in the capacity of the constituent member of the other part.

[In case of more than two members, include the details accordingly].

Now, the Joint Venture Firm [JV] formed by the members i.e.[indicate name of lead member] and [indicate name of constituent member] and [indicate name of other constituent member] will be known as [indicate JV firm name and address].

The expressions [indicate name of the lead member] and [indicate name of the constituent members], shall whatever the context admits, mean and include their respective legal representatives, successors-in-interest and assigns, and shall collectively be referred to as **“Joint Venture Firm”** and individually as the **“Member”**

1. WHEREAS; President of India, acting through Ministry of Railways, **North Eastern Railway DRM/Engg./Varanasi** [hereinafter referred to as **“Employer”**] has invited Tender for “[indicate name of work as mentioned in Notice inviting Tender]”. And Where as, the above members to the Joint Venture Firm have submitted the tender in the name of the said JV Firm formed as per the MOU signed on dated..... and whereas the said tender has finally been accepted by the Employer [Railways] vide Letter Of Acceptance No.....dated....., we [indicate name of the lead member] and [indicate name of the constituent members], herewith sign the above formal JV

agreement for registration of the above joint venture Firm viz [indicate JV firm name and address] and for entering into contract Agreement with the “Employer” [Railway].

2. NOW, THEREFORE, THE PARTIES AGREE AS FOLLOWS :

The following documents shall be deemed to form and be read and construed as an integral part of this J.V. Agreement.

- i] Notice inviting Tender,
- ii] Tender document,
- iii] Any Addendum/Corrigendum issued by [North Eastern Railway, Engg. Department]
- iv] MOU signed on.....by us.
- v] Tender submitted on our behalf by the Authorized Member.
- vi] Letter Of Acceptance issued by Employer [Railways].

3. The ‘Members’ have studied the documents, JV guidelines and have agreed to participate in submitting the ‘Tender’ jointly; signed the JV MOU and submitted the tender accordingly.

4. [indicate the name of the Lead Member] shall be the “Lead member” of the JV Firm ,for all intents and purposes having majority share [i.e 51% or more] in Joint Venture Firm and who have also successfully completed any of the following during last 07 (seven) years, ending last day of month previous to the one in which tender is invited. (As per technical eligibility criteria mentioned in para 9.1).

5. We, authorize [indicate lead member or any one of the constituent member of JV firm nominated as authorized member], as **Authorized member represented by their authorized signatory Shri. [indicate the name] to act on behalf of the Joint Venture Firm to deal with the tender, sign the agreement or enter into contract in respect of the said tender/contract, to receive payment, to witness joint measurement of work done, to sign measurement books and similar such action in respect of the said tender/ contract. However, authorized member shall not submit any such proposals, clarifications or commitments without securing clearance of other JV constituents[s].**

All notices/correspondences with respect to the tender/contract would be sent by Employer [Railways] **only to the authorized signatory of Authorized member at the address of JV firm.** All such notices/correspondences sent by Employer shall be legally binding on all the members of the J.V Firm.

6. The ‘Members’ resolve that the distribution of share of Financial, Technical, and other responsibilities of the constituent members of JV Firm is as under:

(a) [indicate name and Address of Lead Member] **Share%**

Lead Member

(b) [indicate name and Address of Constituent Member] **Share%**

Constituent Member

(c) [indicate name and Address of Other Constituent Member] **Share%**

Other Constituent Member

7. The constitution of JV firm shall not be altered during the currency of the contract except when modification become inevitable due to succession laws etc. provided that the minimum eligibility criteria are not got vitiated. Failure to observe this stipulation shall be deemed to be breach of contract, which will entitle the Employer[Railway] to take all consequential action as per contract conditions.

8. **JOINT AND INDIVIDUAL RESPONSIBILITY**

The Members undertake that they shall be jointly and individually liable to the Employer [Railways] for execution of the work in accordance with General and Special Conditions of Contract. The JV members shall also be liable jointly and severally for the loss, damages caused to the Employer [Railways] during the course of execution of the contract or due to non-execution of the contract or part thereof. The members solemnly affirm and declare that every possible care will be taken by them for ensuring satisfactory execution and completion of the work awarded under the contract

9. **ASSIGNMENT AND THIRD PARTIES**

No member of the Joint Venture firm shall have the right to assign or transfer the interest, right or liability in the contract without the written consent of the other members and that of the Employer [Railways] in respect of the said tender/contract.

10. **GUARANTEES AND BONDS**

All bonds/guarantees e.g Performance Guarantee, Bank Guarantee etc. to the Employer [Railways] shall be submitted by the JV Firm as per tender conditions, only in the name of J.V Firm.

11. **INDEMNITY**

Each member hereto agrees to indemnify the other members against its respective parts in case of breach/default of the respective part of the contract/tender of any liabilities sustained by the Joint Venture Firm.

12. **USE OF MACHINERY, INSTRUMENT, LABOUR FORCE etc.**

For the execution of the respective portions of works, the members shall make full arrangements to bring the required finance, plants and equipment, materials, manpower and other resources. However, the members here to undertake that whatever the machinery, instruments, labour force, [including unskilled, skilled, inspectors, Engineer etc.] they possess at the time of entering into Joint Venture Agreement or which subsequently shall come in their possession and if such machinery, instruments, labour force is required for the speedy and efficient execution of any portion of the work, the member/members having the control over the said machinery, instruments, labour force etc. without having any regard to their share of profit and loss agreed to between the members in Joint Venture Agreement shall hand over the same which shall be placed at the disposal of the other member actually executing that portion of the work at mutually agreed terms for the purpose of execution of the contract without any hindrance and Obstacle.

13. DOCUMENTS and CONFIDENTIALITY.

Each member shall maintain confidentiality regarding the information related to the tender/contract, commercial and technical information received or generated in the course of preparation and submission of the Tender and execution of contract.

14. ARBITRATION

Any dispute, controversy or claim arising out of or relating to this agreement shall be settled in the first instance amicably between the members. If an amicable settlement cannot be reached as above, it will be settled by arbitration in accordance with the Indian Arbitration and Conciliation Act 1996 or any amendments thereof. The Venue of the arbitration shall be **VARANASI**. Notwithstanding settlement of any dispute among the members of the JV Firm, the JV members shall ensure satisfactory completion of awarded work as per the contract with the Employer [Railways].

15. DURATION OF JOINT VENTURE AGREEMENT

It shall be valid during the entire currency of the contract including the period of extension if any and the maintenance period after the work is completed and till Security Deposit is released.

16. NOTICES/CORRESPONDANCE

All Notices/Correspondence by Employer [Railways] in writing shall be sent by Fax confirmed, by registered post or commercial courier to the following Fax number and address.

[Indicate name of authorized signatory of authorized member, name and address of JV Firm with Fax number]

- 17. Governing Laws :** The J.V. Agreement shall in all respect be governed by and interpreted in accordance with Indian Laws.

Declaration:-

It is certified that we are not blacklisted or debarred by the Railways or any other Ministries/Departments/PSU[Public Sector Undertaking] of the Govt. of India/State Govt. from participation in tenders /contracts on the date of closing of Tender either in our individual capacity or as a member of the JV Firm in which we were/are members. Information herein, if found incorrect, shall authorise Railways to terminate the agreement and recover damages as awarded by the Arbitrator appointed under the Provision of Arbitration Act. IN WITNESS WHEREOF THE MEMBERS, have executed this JV Agreement on

[indicate day, month and year]

[indicate name of authorized signatory]

[indicate name of authorized signatory]

[indicate name and address of constituent member]

[indicate name and address of lead member]

[Seal]

[Seal]

Witness:

1 [Name and Address]

2 [Name and Address]

Place :

Date :

[The J.V. Agreement should be got registered with Registrar of Company Act or with the Registrar/Sub-registrar under the registration act.]

FORMAT FOR AFFIDAVIT TO BE SUBMITTED / UPLOADED BY TENDERER ALONGWITH THE TENDER DOCUMENTS

(To be executed in presence of Public notary on non-judicial stamp paper of the value of ₹ 100/-. The stamp paper has to be in the name of the tenderer) **

I..... (Name and designation)** appointed as the attorney/authorized signatory of the tenderer (including its constituents),

M/s_____ (hereinafter called the tenderer) for the purpose of the _____ Tender documents for the work of _____ as per the tender No. _____

of (----- Railway), do hereby solemnly affirm and state on the behalf of the tenderer including its constituents as under:

1. I/we the tenderer (s) am/are signing this document after carefully reading the contents.
2. I/We the tenderer(s) also accept all the conditions of the tender and have signed all the pages in confirmation thereof.
3. I/we hereby declare that I/we have downloaded the tender documents from Indian Railway website www.ireps.gov.in . I/we have verified the content of the document from the website and there is no addition, no deletion or no alteration to the content of the tender document. In case of any discrepancy noticed at any stage i.e. evaluation of tenders, execution of work or final payment of the contract, the master copy available with the railway Administration shall be final and binding upon me/us.
4. I/we declare and certify that I/we have not made any misleading or false representation in the forms, statements and attachments in proof of the qualification requirements.
5. **I/We also understand that my/our offer will be evaluated based on the documents/credentials submitted alongwith the offer and same shall be binding upon me/us.**
6. **I/We declare that the information and documents submitted along with the tender by me/us are correct and I/we are fully responsible for the correctness of the information and documents, submitted by us.**
7. I/we understand that if the certificates regarding eligibility criteria submitted by us are found to be forged/false or incorrect at any time during process for evaluation of tenders, it shall lead to forfeiture of the tender EMD besides banning of business for a

period of upto five year. Further, I/we (*insert name of the tenderer*) **_____and all my/our constituents understand that my/our offer shall be summarily rejected.

8. I/we also understand that if the certificates submitted by us are found to be false/forged or incorrect at any time after the award of the contract, it will lead to termination of the contract, alongwith forfeiture of EMD/SD and Performance guarantee besides any other action provided in the contract including banning of business for a period of upto five year.

DEPONENT
SEAL AND SIGNATURE
OF THE TENDERER

VERIFICATION

I/We above named tenderer do hereby solemnly affirm and verify that the contents of my/our above affidavit are true and correct. Nothing has been concealed and no part of it is false.

DEPONENT
SEAL AND SIGNATURE
OF THE TENDERER

Place:

Dated:

** The contents in Italics are only for guidance purpose. Details as appropriate are to be filled in suitably by tenderer.

Annexure-2

NORTH EASTERN RAILWAY
[ENGINEERING DEPARTMENT-OPEN LINE]
SPECIMEN FORMAT OF BANK GUARANTEE BOND
PROFORMA FOR BANK GUARANTEE
(Executed on non judicial stamp paper)

Name of the Bank-----

Bank Guarantee Bond No. and date -----, **Valid up to**-----

Amount of Bank Guarantee Bond-----,

PERFORMANCE GUARANTEE BOND

In consideration of the President of India acting through _____ (hereinafter called "The Government") having agreed under the terms and conditions of contract under Acceptance Letter No.-----dated ----- made between _____ and agency M/s/Shri _____ (herein after called "the said contractor(s)" for _____ the _____ work " _____

_____ " (here in after called "the said contract") having agreed for submission of a irrevocable Bank Guarantee Bond equivalent to 5% of the contract value as indicated in the aforesaid contract for Rs._____ (Rupees _____ only) as a performance security Guarantee Bond from the contractor (s) for compliance of his obligations in accordance with the terms & conditions in the aforesaid contract.

1. We, ----- (indicate the name of the Bank) hereinafter referred to as the Bank, under - take to pay to the Government an amount not exceeding Rs.----- (Rupees ----- only) on demand by the Government.

2. We,----- (indicate the name of the bank), further agree that and promise) to pay the amounts due and payable under this guarantee without any demur merely on a demand from the Government through the **F.A. & C.A.O/N.E. Railway, Gorakhpur**, stating that the amount claimed is due by way of loss or damage caused to or would be caused or suffered by the Government by reason of any breach by the said contractor of any of the terms of conditions contained in the said contract/agreement or by reason of the contractor failure to perform the said agreement. Any such demand made on the Bank shall be conclusive as regards the amount due and payable by the Bank under this guarantee. However, our liability under this guarantee shall be restricted to an amount not exceeding Rs.----- (Rupees-----Only).

3. (a) We,----- (indicate the name of Bank) further undertake to pay to the Government any money so demanded notwithstanding any dispute or dispute raised by the contractor(s) in any suite or proceeding pending before any court or Tribunal relating to liability under this present being absolute and unequivocal.

(b) The payment so made by us under this bond shall be a valid discharge of our liability for payment there under and the contractor(s) shall have no claim against us for making such payment.

4. We,------(indicate the name of bank) to further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said agreement and that it shall continue to be enforceable till all the dues of the Government under or by virtue of the said agreement have been fully paid and its claims satisfied or discharged by -----(contracting authority) on behalf of the Government, certify that the terms and conditions of the said agreement have been fully and properly carried out by the said contractor(s) and accordingly discharge this guarantee.

5 (a) Notwithstanding anything to the contrary contained herein the liability of the bank under this guarantee will remain in force and effect until such time as this guarantee is discharged in writing by the Government or until (date of validity/ extended validity) whichever is earlier and no claim shall be valid under this guarantee unless notice in writing thereof is given by the Government within validity/extended period of validity of guarantee from the aforesaid date.

(b) Provided always that We----- (indicate the name of the Bank) unconditionally undertakes to renew this guarantee or to extend the period of guarantee form year to year before the expiry of the period or the extended period of the guarantee, as the case may be on being called upon to do so by the Government. If the guarantee is not renewed or the period extended on demand, we ----- (indicate the name of the Bank) shall pay the Government the full amount of guarantee on demand and without demur.

6. We, ----- (indicate the name of Bank) further agree with the Government that the Government shall have the fullest liberty without our consent and without effecting in any manner out of obligations hereunder to vary any of the terms and conditions of the said contract from time to time or to postpone for any time or from time to time any to the powers exercisable by the Government against the said contractor (s) and to forbear or enforce any of the terms and conditions of the said agreement and we shall not be relieved from our liability by reason of any such variation, or extension being granted to the said contractor(s) or for any forbearance act or omission on the part of the Government or any indulgence by the Government to the said contractor(s) or by any such matter or thing whatsoever which under the law relating to sureties for the said provision would relive us from the liability.

7. This guarantee will not be discharged by any change in the constitution of the Bank or the Contractor(s).

8. We-----, (indicate the name of the Bank) lastly undertake not to revoke this guarantee except with the previous consent of the Government in writing.

9. This guarantee shall be valid up to ----- (Date of Completion plus 60 days). Unless extended on demand by Government. Notwithstanding anything to the contrary contained hereinbefore, our liability under this guarantee is restricted to Rs..... (Rupees.....) unless a demand under this guarantee is made on us in writing on or before..... We shall be discharged from our liabilities under this guarantee thereafter.

Dated the _____ day of _____.

(indicate the day) (indicate the month and year)
Signature and seal of authorised official of Bank
Designation

(Name of bank)
Full Address

Annexure-3**NORTH EASTERN RAILWAY****CONTRACT AGREEMENT OF WORKS**

Total approximate value of the work Rs.....(Rupees..... only)

CONTRACT AGREEMENT NO. _____ DATED _____

ARTICLES OF AGREEMENT made this _____ day of _____ 20____
between President of India acting through the Railway Administration hereafter called the
"Railway" of the one part and _____ herein after called the
"Contractor" of other part.

WHEREAS the Contractor has agreed with the Railway for performance of the works
_____ set forth in the Schedule hereto annexed upon the Standard
General Conditions of Contract, corrected upto latest correction slips and the Specifications
of _____ Railway corrected upto the latest correction slips and the Schedule of
Rates of _____ Railway, corrected upto latest correction slips and the Special
Conditions and Special Specifications, if any and in conformity with the drawings here-into
annexed AND WHEREAS the performance of the said works is an act in which the public
are interested.

NOW THIS INDENTURE WITNESSETH that in consideration to the payments to be
made by the Railways, the Contractors will duly perform the said works in the said schedule
set forth and shall execute the same with great promptness, care and accuracy in a workman
like manner to the satisfaction of the Railway and will complete the same in accordance with
the said specifications and said drawings and said conditions of contract on or before the
_____ day of _____ 20____ and will maintain the said works for a period of
_____ Calendar months from the certified date of their completion and will observe,
fulfill and keep all the conditions therein mentioned (which shall be deemed and taken to be
part of this contract, as if the same have been fully set forth herein), AND the Railway, both
hereby agree that if the Contractor shall duly perform the said works in the manner aforesaid
and observe and keep the said terms and conditions, the Railway will pay or cause to be paid
to the Contractor for the said works on the final completion thereof the amount due in respect
thereof at the rates specified in the Schedule hereto annexed.

Contractor _____ (Signature)

Railway: Designation _____

Address _____

(For President of India)

Date _____

Date _____

Signature of **Witnesses** (to Signature of Contractor) with address:

Witnesses:

LCDA No. (18 DIGIT IPAS GENERATED NO.)

Dated:_____

DOCUMENT OF AUTHORIZATION

Reference: (i) Works Contract/ Supply Contract No _____ Dated _____
(ii) Inland Letter of Credit No. _____ Dated _____

This document is issued against contract No _____ (FROM IREPS)-----
 dated-----for supply/work of:-----DESCRIPTION OF GOODS /WORK FROM
 IREPS)-----

The beneficiary of the aforementioned Letter of Credit M/sNAME AND VENDOR
 CODE) ... (Vendor Code as per IRPES) is entitled to receive payment. aggregating INR\$\$\$.....
 (FROM ABSTRACT OF BIIL PASSED) out of a total LC amount of INR ... (FROM
 MASTER TABLE OF LC OPENED against the first/second" commercial
 Invoice No.(FROM IPAS) Dated ____FROM IPAS _____ for INR (FROM
 IPAS)_____ raised against the above contract from State Bank of India_____ (branch
 – FROM LC MASTER TABLE) _____ on the strength of this Certificate .

The details or payments already made to the beneficiary under this Letter or Credit are as follows :

:

S.NO.	INVOICE NO.	INVOICE DATE	INVOICE AMOUNT (INR)	LCDA NO	LCDA DATE	AMOUNT PAID (INR)
Total Paid						

THIS PAYMENT : _____\$\$\$ _____

LC BALANCE AFTER THIS PAYMENT : _____

(Signature of authorised Railway authority)

Name

Designation

TENDERER'S CREDENTIALS (BID CAPACITY)**NORTH EASTERN RAILWAY**

For works costing more than ₹ 20 cr. or as prescribed by Railways through instruction/NIT issued for the work, the tenderers who meet the minimum eligibility criteria will be qualified only if their available bid capacity is equal to or more than the total bid value of the present tender. The available bid capacity shall be calculated as under:

$$\text{Available Bid Capacity} = [A \times N \times 2] - B$$

Where

A = Maximum value of construction works executed and payment received in any one financial year during the current and last three financial years immediately preceding the current financial year, upto date of opening of tender, taking into account the completed as well as works in progress.

N= Number of years prescribed for completion of work for which bids has been invited.

B = Value of existing commitments and balance amount of ongoing works with the tenderer to be completed in next 'N' years.

Note:

(a) The Tenderer(s) shall furnish the details of existing commitments and balance amount of ongoing works with tenderer as per the prescribed proforma of Railway for statement of all works in progress and also the works which are awarded to tenderer but yet not started upto the date of opening of tender. In case of no works in hand, a 'NIL' statement should be furnished. This statement should be submitted duly verified by Chartered Accountant.

(b) In case of JV, the tenderer(s) must furnish the details of existing commitments and balance amount of ongoing works with each member of JV as per the prescribed proforma of Railway for statement of all works in progress and also the works which are awarded to tenderer but yet not started upto the date of opening of tender. In case of no works in hand, a 'NIL' statement should be furnished. This statement should be submitted duly verified by Chartered Accountant.

(c) Value of a completed work/work in progress/work awarded but yet not started for a Member in an earlier JV shall be reckoned only to the extent of the concerned member's share in that JV for the purpose of satisfying his/her compliance to the above mentioned technical eligibility criteria in the tender under consideration.

(d) The arithmetic sum of individual "bid capacity" of all the members shall be taken as JV's "bid capacity".

(e) In case, the tenderer/s failed to submit the above statement along with offer, their/his offer shall be considered as incomplete and will be rejected **summarily**.

(f) The available bid capacity of tenderer shall be assessed based on the details submitted by the tenderer. In case, the available Bid Capacity is lesser than estimated cost of work put to tender, his offer shall not be considered even if he has been found eligible in other eligibility criteria/tender requirement.

BID CAPACITY PROFORMA

NAME OF BIDDER WITH ADDRESS :-

1	A = Maximum value of construction works executed and payment received in any one financial year during the current and last three financial years immediately preceding the current financial year, upto date of opening of tender, taking into account the completed as well as works in progress.	₹
2	N= Number of years prescribed for completion of work for which bids has been invited.	
3	B = Value of existing commitments and balance amount of ongoing works with the tenderer to be completed in next 'N' years.	₹

$$\text{BID CAPACITY} = [A \times N \times 2] - B$$

ANNEXURE-6

Reference Para 64.3 & 64.6

Agreement towards Waiver under Section 12(5) and Section 31A (5) of Arbitration and Conciliation (Amendment) Act

I/we..... (Name of agency/Contractor) with reference to agreement no..... raise disputes as to the construction and operation of this contract, or the respective rights and liabilities, withholding of certificate and demand arbitration in respect of following claims :

Brief of claim:

- (i) Claim 1- Detailed at Annexure-
- (ii) Claim 2 –
- (iii) Claim 3 –

I/we..... (post of Engineer) with reference to agreement no..... hereby raise disputes as to the construction and operation of this contract, or the respective rights and liabilities, withholding of certificate and demand arbitration in respect of following claims:

I/we.....do/do not agree to waive off applicability of section 12(5) of Arbitration and Conciliation (Amendment) Act.

Signature of Claimant_____ Signature of Respondent

Agreement under Section 31(5)

I/we..... (Name of claimant) with reference to agreement no..... hereby waive off the applicability of sub section 31-A (2) to 31-A (4) of the Arbitration and Conciliation (Amendment) Act. We further agree that the cost of arbitration will be shared by the parties as per Clause 64(6) of GCC.

Signature of Claimant_____ Signature of
Respondent_____

*Strike out whichever not applicable.

ANNEXURE-7

Reference Para 64.(3)

**Certification by Arbitrators appointed under Clause 63 & 64 of Indian Railways
General Conditions of Contract**

1. Name:
2. Contact Details:
3. Prior experience (Including Experience with Arbitrations):
4. **I do not have more than ten on-going Arbitration cases with me.**
5. I hereby certify that I have retired from Railways w.e.f. _____ and empanelled as Railway Arbitrator as per 'The Arbitration and Conciliation Act- 1996'.
6. I have no any past or present relationship in relation to the subject matter in dispute, whether financial, business, professional or other kind.
Or
I have past or present relationship in relation to the subject matter in dispute, whether financial, business, professional or other kind. The list of such interests is as under:
7. I have no any past or present relationship with or interest in any of the parties whether financial, business, professional or other kind, which is likely to give rise to justifiable doubts as to my independence or impartiality in terms of The Arbitration and Conciliation Act-1996.
Or
I have past or present relationship with or interest in any of the parties whether financial, business, professional or other kind, which is likely to give rise to justifiable doubts as to my independence or impartiality in terms of The Arbitration and Conciliation Act-1996. The details of such relationship or interests are as under:
8. There are no concurrent Circumstances which are likely to affect my ability to devote sufficient time to the arbitration and in particular to finish the entire arbitration within twelve months.
Or
There are Circumstances which are likely to affect my ability to devote sufficient time to the arbitration and in particular to finish the entire arbitration within twelve months. The list of such circumstances is as under:

NORTH EASTERN RAILWAY

[ENGINEERING DEPARTMENT-OPEN LINE]

ANNEXURE – ‘A’

HISTORY SHEET OF THE TENDERER

i]	Name of the Company :	
ii]	Address of Registered Office	
	Phone: Fax: e-mail ID:	
iii]	Constitution of the Company/Firm :	
a]	Ownership particulars whether Private Ltd., Public Ltd., or Partnership firm or Proprietorship Firm or any other type duly supported by the documents such as Partnership Deed and Articles of constitution etc. as applicable. :	
b]	Name and address of collaborator[s] :	
c]	Nature of participation by collaborator[s] in share holding of the Company :	
d]	Extent and nature of proposed participation by collaborator[s] in execution of this work :	
iv]	Number of years the firm has been in operation in India under its present :	
v]	Any other information	

Signature of tenderer
Along with Seal

NORTH EASTERN RAILWAY

[ENGINEERING DEPARTMENT-OPEN LINE]

ANNEXURE – ‘B’

Compliance of Eligibility criteria by the tenderer regarding execution of similar works must have successfully completed during last 07 (seven) years, ending last day of month previous to the one in which tender is invited. (As per technical eligibility criteria mentioned in para 9.1 (Instructions to Tenderer)) (*Advt. Value Above Rs. 50.00 Lacs*).

1. Name and style of the contractor with address [Present tenderer]
2. Name and scope of the work executed
3. Authority who have awarded the contract.
4. Full address of the authority under whom the contract was executed.
5. Whether it is a Govt/Railway/Semi Govt organization.
6. Contractual Agreement No. and date.
7. Value of the contract.
 - [a] Original value of the contract.
 - [b] Value of works executed and payment received Rs.
 - [c] Last sanctioned agreemental value in Rs.....
8. [a] Date of award of contract.
- [b] Date of actual completion of work.
9. Details of copy of documents attached in support of completion of above similar works.
 - [a] Certificate No. and date.
 - [b] Authority issued.

10. Declaration by the tenderer : I hereby declare that the information given above are true and the copy of the certificate enclosed is genuine. If any of the information given above is found to be wrong at any time, my tender will liable to be rejected and such liability will be compensated by me.

Name and signature of tenderer
along with Seal.

Note. [1] Certificates containing the above information will only be considered. In complete certificates/copy of bills/letter of acceptance will not be considered.

NORTH EASTERN RAILWAY
[ENGINEERING DEPARTMENT-OPEN LINE]

ANNEXURE – ‘C’

Compliance of Eligibility criteria by the Tenderer regarding contractual payments received during the qualifying period i.e during the previous three financial years and the current financial year upto the date of opening of tender. (Advt. Value Above Rs. 50.00 Lacs).

1. Name and style of the Tenderer with address [present tenderer]
2. Amount of contractual payment received as per the audited balance sheet of the contractor [Tenderer].

Year	Amount of contractual payments received	Page Ref of Audited Balance Sheet
Current financial year	Rs.	F/.....
3 rd Previous financial year	Rs.	F/.....
2 nd Previous financial year	Rs.	F/.....
1 st Previous financial year	<u>Rs.</u>	<u>F/.....</u>
Total Rs.		

3. [i] **Name :-**

[ii] **address:-**

[iii] **Phone No:-**

[iv] **Fax No:-**

[v] **e-mail ID:-**

[of the Chartered Accountant who have audited the balance sheet.]

4. Declaration by the tenderer: I hereby declare that the information given above are true and copy of the certificate enclosed is also genuine. If any of the information given above is found to be wrong at any time, my tender will liable to be rejected.

Name and signature of Tenderer
along with Seal.

Note. :-

1. Scanned copy of Chartered Accountant certificate along with copy of balance sheet of the contractors should be furnished.
2. The value of total contractual payments received within the previous three financial years and the current financial year upto the date of opening of tender should be minimum of 150% of the advertised tender value.
3. Contractual payment should not be construed as “Turn Over “which includes contractual payments received, works in progress, stock on hand etc.
4. Current financial year means, the financial year in which the tender is opened. Financial year means on and from 1st April to 31st March.

Signature of tenderer
Along with Seal

Signature of tenderer
Along with Seal

Signature of Tenderer
Along with Seal

NORTH EASTERN RAILWAY
[ENGINEERING DEPARTMENT-OPEN LINE]

ANNEXURE – ‘ G’
DETAILS OF WORKS ON HAND OF THE TENDERER[s]

Sl	Name of work	Total cost of contact value in Rs/-	Month and year of commencement	Date of award and Completion period	Present progress		Full address of the authority under whom the work is being executed	Documentary proof [enclose copies of acceptance letter and proof regarding present progress etc. and indicate Annexure No. in this column]
					Financial	Physical		
1	2	3	4	5	6	7	8	9

Signature of tenderer
Along with seal

NORTH EASTERN RAILWAY
[ENGINEERING DEPARTMENT-OPEN LINE]

ANNEXURE – ‘ H’

**DECLARATION REGARDING ASSOCIATION OF RAILWAY OFFICER[S] WITH
TENDERER[S]**

Sl	N a m e	Status with the tenderer	If working in Railway on the date of tendering, designation and place of posting	If retired on the date of tendering		
				Date of retirement	Status at retirement	Particulars of permission taken for associating with the tenderer
1	2	3	4	5	6	7

Signature of Tenderer
Along with Seal.

NORTH EASTERN RAILWAY
[ENGINEERING DEPARTMENT-OPEN LINE]

ANNEXURE – ‘ I’

LIST OF COURT CASES DURING PREVIOUS SEVEN YEARS

Sl	Name of work	Value of Work	Name of Client Deptt.	Name of the Court	Date of institution of case	Relief sought from Court	Brief reason of dispute	Final/Present position of the case
1	2	3	4	5	6	7	8	9

Signature of tenderer
Along with Seal

NORTH EASTERN RAILWAY
[ENGINEERING DEPARTMENT-OPEN LINE]

ANNEXURE – ‘J’

LIST OF ARBITRATION CASES DURING PREVIOUS SEVEN YEARS.

Sl	Name of Work	Value of work	Name of Client Deptt.	Amount and date of claim preferred	Claim of Deptt. if any	Brief reasons of disputes	Final/Present position of the case
1	2	3	4	5	6	7	8

Signature of Tenderer
Along with Seal

Annexure-K

Constitution of Firm

1. Full name of contractor/s construction firm and year of establishment.
2. Registered Head Office Address.
3. Branch Office in India.
- 4 Address on which correspondence regarding this tender should be done.
5. Constitution of firm, give full details including name of partners/executives/power of attorney /holders etc.

END OF TENDER DOCUMENT